



REPUBLIC OF THE PHILIPPINES
DEPARTMENT OF INFORMATION AND
COMMUNICATIONS TECHNOLOGY



**BIDDING DOCUMENTS
FOR THE PROVISION OF INTERNET
ACCESS VIA LOW EARTH ORBIT
SATELLITE (PIALEOS) FOR
GOVERNMENT SUPPORT IN
BARANGAY HALLS AND PUBLIC
TRANSPORT TERMINALS IN
REGION XIII**

**APPROVED BUDGET FOR THE CONTRACT
Php 3,945,881.00**

**BID REFERENCE NUMBER:
DICT 13-2026-007**

MAY 2026

Preface

This Philippine Bidding Documents (PBD) for the Government of the Philippines (GoP) for the procurement of Goods through [*Competitive Bidding, Limited Source Bidding, Competitive Dialogue,¹ or Unsolicited Offer with Bid Matching²*] have been prepared by the GoP for use by all branches, agencies, departments, bureaus, offices, or instrumentalities of the government, including government-owned and/or -controlled corporations (GOCC), government financial institutions (GFI), state universities and colleges (SUC), and local government units (LGU) and autonomous regional government use in projects that are financed in whole or in part by the GOP or any foreign government/foreign or international financing institution³ in accordance with the provisions of the Implementing Rules and Regulations (IRR) of Republic Act (RA) No. 12009.

The Bidding Documents shall clearly and adequately define, among others: (a) the objectives, scope, and expected outputs and/or results of the proposed contract; (b) the eligibility requirements of Bidders, such as track record to be determined by the Head of the Procuring Entity (HoPE); (c) the expected contract duration, the estimated quantity in the case of procurement of goods, delivery schedule and/or time frame; and (d) the obligations, duties, and/or functions of the winning Bidder.

In order to simplify the preparation of the Bidding Documents for each procurement, the PBD groups the provisions that are intended to be used unchanged in Section II. Instructions to Bidders (ITB) and in Section IV. General Conditions of Contract (GCC). Data and provisions specific to each procurement and contract should be included in Section III. Bid Data Sheet (BDS); Section V. Special Conditions of Contract (SCC); Section VI. Schedule of Requirements; and Section VII. Technical Specifications. The forms to be used are provided in Section VIII. Philippine Bidding Document Related Forms.

Prudence must be exercised to check the relevance of the provisions of the PBD against the requirements of the specific Goods to be procured. In addition, each section is prepared with notes intended only as information for the Procuring Entity or the person drafting the Bidding Documents. They shall not be included in the final documents, except for the notes introducing Section VIII. Philippine Bidding Document Related Forms where the information is useful for the Bidder. The following general directions should be observed when using the documents:

- All the documents listed in the Table of Contents are normally required for the procurement of Goods. However, they should be adapted as necessary to the circumstances of the particular Project.
- Specific details, such as the “name of the Procuring Entity” and “address for bid submission,” should be furnished in the ITB, BDS, and SCC. The final documents should contain neither blank spaces nor options.

¹ For Second Stage of Competitive Dialogue under Section 29.4.2 of IRR of RA No. 12009.

² For Comparative or Competitive Bidding for Unsolicited Offer under Section 30.7 of IRR of RA No. 12009.

³ Unless the Treaty or International or Executive Agreement expressly provides use of foreign government/foreign or international financing institution procurement guidelines.

- This Preface and the footnotes or notes in italics included in the Invitation to Bid, BDS, SCC, Schedule of Requirements, and Specifications are not part of the text of the final document, although they contain instructions that the Procuring Entity should strictly follow. The Bidding Documents should not contain footnotes except Section VIII. Philippine Bidding Document Related Forms since these provide important guidance to Bidders.
- The cover page should be modified as required to identify the Bidding Documents and date of issue.
- The Project title page should be modified as required to identify the Project title and number, name and address of the Procuring Entity.
- If modifications must be made to the bidding requirements, they can be presented in the BDS. Modifications for specific Project or Contract details should be provided in the SCC as amendments to the Conditions of Contract. For easy reference and completion, clauses from the PBD and SCC shall appear in bold typeface on Section II. Instructions to Bidders and Section IV. General Conditions of Contract, respectively.

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Glossary of Acronyms, Terms, and Abbreviations

ABC – Approved Budget for the Contract.

BAC – Bids and Awards Committee.

BDS – Bid Data Sheet.

BIR – Bureau of Internal Revenue.

BSP – Bangko Sentral ng Pilipinas.

CDA - Cooperative Development Authority.

CIF – Cost Insurance and Freight.

CIP – Carriage and Insurance Paid.

COS – Contract of Service.

CPI – Consumer Price Index.

DDP – Delivered Duty Paid.

DOLE – Department of Labor and Employment.

DTI – Department of Trade and Industry.

EXW – Ex works.

FCA – “Free Carrier” shipping point.

FOB – “Free on Board” shipping point.

GCC - General Conditions of Contract.

GFI – Government Financial Institution.

GOCC – Government-Owned and/or –Controlled Corporation.

GoP – Government of the Philippines.

GPPB – Government Procurement Policy Board.

HoPE – Head of Procuring Entity.

INCOTERMS – International Commercial Terms.

IRR – Implementing Rules and Regulations.

ITB – Instructions to Bidders.

JO – Job Order.

LCB- Lowest Calculated Bid.

LCRB – Lowest Calculated Responsive Bid.

LGU – Local Government Unit

LoC – Letter of Credit.

MAB – Most Advantageous Bid.

MARB – Most Advantageous Responsive Bid.

MEARB – Most Economically Advantageous Responsive Bid.

MYCA – Multi-Year Contracting Authority.

NFCC – Net Financial Contracting Capacity.

NGA – National Government Agency.

PhilGEPS - Philippine Government Electronic Procurement System.

PSA – Philippine Statistics Authority.

RA No. – Republic Act Number.

SARB – Single Advantageous Responsive Bid.

SCC - Special Conditions of Contract.

SCRB – Single Calculated Responsive Bid.

SEARB – Single Economically Advantageous Responsive Bid.

SEC – Securities and Exchange Commission.

SLCC – Single Largest Completed Contract.

UN – United Nations.

Definition of Terms

Bid – a signed offer, proposal, or quotation submitted by a supplier, manufacturer, distributor, contractor, consultant, or service provider in response to the requirements of the Procuring Entity as stated in the Bidding Documents. (IRR, Section 5[c]).

Bidder – a supplier, manufacturer, distributor, contractor, consultant, and service provider, whether public or private, who submits a Bid in response to the requirements of the Procuring Entity as stated in the Bidding Documents. (IRR, Section 5[d]).

Bidding Documents – the documents issued by the Procuring Entity as the basis for Bids, furnishing all information necessary to prospective Bidder to prepare a Bid for the Goods, Infrastructure Projects, and Consulting Services required by the Procuring Entity. (IRR, Section 5[e]).

Contract – refers to the agreement entered into between the Procuring Entity and the Supplier or Manufacturer or Distributor or Service Provider for procurement of Goods and Services; Contractor for Procurement of Infrastructure Projects; or Consultant or Consulting Firm for Procurement of Consulting Services; as the case may be, as recorded in the Contract Form signed by the parties, including all attachments and appendices thereto and all documents incorporated by reference therein.

Contract Price - the price payable to the Supplier under the Contract for the full and proper performance of its contractual obligations.

Effective Date of the Contract – the date indicated in the contract. However, the Supplier shall commence performance of its obligations only upon receipt of the Notice to Proceed.

Foreign-funded Procurement or Foreign-Assisted Project – refers to the acquisition of Goods, Consulting Services, and the contracting for Infrastructure Projects by the Government of the Philippines which are wholly or partly funded by foreign loans or grants pursuant to a Treaty or International or Executive Agreement.

Framework Agreement – is a procurement strategy which shall be in the nature of an option contract between the Procuring Entity and the Bidder that stipulates the terms and conditions to be applied in subsequent contracts for the procurement of Goods, Infrastructure Projects, and Consulting Services with a single or multiple contractor, manufacturer, supplier, distributor, consultant, and service provider to expand the pool of prospective Bidders, take advantage of economies of scale, minimize the administrative burden of conducting separate procurement activities, and generate time and money savings. (IRR, Section 16.2).

Goods – refer to (i) all items, supplies, and materials, whether in the nature of equipment, furniture, stationery, materials for construction, or personal property of any kind, needed in the transaction of public businesses or in the pursuit of any government undertaking, project or activity; or (ii) general support services which pertain to all types of services except

Consulting Services and Infrastructure Projects, such as the repair and maintenance of equipment and furniture, as well as trucking, hauling, janitorial, security, and related or analogous services. Personnel Services or individual COS or JO engagements do not fall under this definition; (IRR, Section 5[n])

MARB – refers to the award criteria in the procurement of Goods where the considerations for the award of contract are the eligibility of the bidder, the responsiveness of its bid to the technical requirements, and the most advantageous bid in reference to the highest rated offer based on the quality component of the bid.

MEARB – refers to the award criteria in the procurement of Goods where the considerations for the award of contract are the eligibility of the bidder, and the responsiveness of its bid to the technical requirements, and the determination of the most economically advantageous bid in reference to the quality-price ratio allocated to the technical and financial components of the bid.

Online submission – pertains to the submission of the bid for Goods and the bid envelopes containing the technical and financial components of the bid through electronic means or through the electronic bidding facility of the PhilGEPS.

Project – refers to a specific or identified procurement covering Goods, Infrastructure Projects or Consulting Services. A Procurement Project shall be described, detailed, and scheduled in the Project Procurement Management Plan prepared by the agency which shall be consolidated in the procuring entity's Annual Procurement Plan.

Services - means those services ancillary to the supply of the Goods, such as transportation and insurance, and any other incidental services, such as installation, commissioning, provision of technical assistance, training, and other such obligations of the Supplier covered under the Contract.

Supplier – refers to a citizen, or any corporate body or commercial company duly organized and registered under the laws where it is established, habitually established in business and engaged in the manufacture or sale of the merchandise or performance of the general services covered by its Bid. Supplier as used in these Bidding Documents may likewise refer to a manufacturer, distributor, contractor, or consultant, or service provider.

Verified Report - the report submitted by the Implementing Unit to the HoPE setting forth its findings as to the existence of grounds or causes for termination and explicitly stating its recommendation for the issuance of a Notice to Terminate.

Section I. Invitation to Bid

INVITATION TO BID

PROVISION OF INTERNET ACCESS VIA LOW EARTH ORBIT SATELLITE (PIALEOS) FOR GOVERNMENT SUPPORT IN BARANGAY HALLS AND PUBLIC TRANSPORT TERMINALS IN REGION XIII

- 1) The **Department of Information and Communications Technology Region 13**, through the **Continuing Fund FY 2025 Special Account in the General Fund - Free Public Internet Access Program** intends to apply the sum of **THREE MILLION NINE HUNDRED FORTY-FIVE THOUSAND EIGHT HUNDRED EIGHTY-ONE PESOS ONLY (PHP 3,945,881.00)** being the Approved Budget for the Contract (ABC) to payments under the contract for the **Provision of Internet Access via Low Earth Orbit Satellite (PIALEOS) for Government Support in Barangay Halls and Public Transport Terminals in Region XIII**. Bids received in excess of the ABC shall be automatically rejected at bid opening.
- 2) The **Department of Information and Communications Technology Region 13** now invites bids for the **Provision of Internet Access via Low Earth Orbit Satellite (PIALEOS) for Government Support in Barangay Halls and Public Transport Terminals in Region XIII**. The delivery of the service and installation, including testing and acceptance, to all locations, is **thirty (30) calendar days** upon receipt of the NTP. Service coverage, meanwhile, shall include SLA and warranty for four (4) months. Service coverage and warranty shall be until the end of the service coverage and operation provided that applicable service extensions, if any, shall be applied. Bidders should have completed, at least 3 years from the date of submission and receipt of bids, contracts similar to the Project. The description of an eligible bidder is contained in the Bidding Documents, particularly, in Section II. Instructions to Bidders.
- 3) Bidding will be conducted through competitive bidding procedures using a non-discretionary “pass/fail” criterion as specified in the IRR of RA No. 12009.

Bidding is restricted to Filipino citizens/sole proprietorships, partnerships, or organizations with at least sixty percent (60%) interest or outstanding capital stock belonging to citizens of the Philippines, and to citizens or organizations of a country the laws or regulations of which grant similar rights or privileges to Filipino citizens, pursuant to RA No. 5183.

- 4) Interested Bidders may obtain further information from the **Department of Information and Communications Technology Region 13** and inspect the Bidding Documents at the address given below from **Monday to Friday, 8:00am to 5:00pm**.
- 5) A complete set of Bidding Documents may be acquired by interested Bidders on **May 30, 2026** from the address given below upon payment of the applicable fee for the

Bidding Documents, pursuant to the latest Guidelines issued by the GPPB, in the amount in the table below:

Lot No.	Scope	ABC	Cost of Bidding Documents
1	Provision of Internet Access via Low Earth Orbit Satellite (PIALEOS) for Government Support in Barangay Halls and Public Transport Terminals in Region XIII - Lot 1	2,502,266.00	5,000.00
2	Provision of Internet Access via Low Earth Orbit Satellite (PIALEOS) for Government Support in Barangay Halls and Public Transport Terminals in Region XIII - Lot 2	1,443,615.00	
	TOTAL	3,945,881.00	

It may also be downloaded free of charge from the website of the Philippine Government Electronic Procurement System (PhilGEPS) and the website of the Procuring Entity, provided that Bidders shall pay the applicable fee for the Bidding Documents not later than the submission of their bids.

- 6) The **Department of Information and Communications Technology Region 13** will hold a Pre-Bid Conference on **June 8, 2026 at 02:00 PM at DICT Bldg., J. Rosales Avenue, Butuan City** and/or through video conferencing via google meet <https://bit.ly/PreBid-007> , which shall be open to prospective Bidders.
- 7) Bids must be duly received by the Bids and Awards Committee (BAC) Secretariat through manual submission at the office address indicated above on or before **June 22, 2026, 12 noon**. Late bids shall not be accepted.
- 8) All Bids must be accompanied by a Bid Security in any of the acceptable forms and in the amount stated in ITB Clause 16.1.
- 9) Bid opening shall be on **June 22, 2026, 2:00 PM at DICT Bldg., J. Rosales Avenue, Butuan City**. Bids will be opened in the presence of the Bidders' representatives who choose to attend the activity.

Note: The DICT13 BAC kindly reminds bidders of the requirement to have at least one (1) representative physically present during the Bid Opening at the DICT Regional Office XIII. It is important to note that submitted bids without a representative during the Bid Opening will still be evaluated. However, please be aware that if any questions or clarifications arise from the BAC, bidders who do not have a representative present will not be permitted to contest or provide further input.

- 10) The **Department of Information and Communications Technology Region 13** reserves the right to reject any and all bids, declare a failure of bidding, or not award the contract at any time prior to contract award in accordance with Section 70⁴ of R.A. No. 12009, without incurring any liability to the affected Bidder or Bidders.

11) For further information, please refer to:

Jezreel Mark Soriano

Department of Information and Communications Technology-Region 13
DICT Building, J. Rosales Avenue, Butuan City
BAC.caraga@dict.gov.ph
(085)817-2011

12) You may visit the PhilGEPS Website for the downloading of Bidding Documents.

May 30, 2026

 Digitally signed
by Salang
Lawrence Page
ENGR. LAWRENCE P. SALANG
BAC Chairperson

Section II. Instructions to Bidders

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A. General

1) Scope of Bid

- 1.1 The **Department of Information and Communications Technology Region 13**, invites bids for the **Provision of Internet Access via Low Earth Orbit Satellite (PIALEOS) for Government Support in Barangay Halls and Public Transport Terminals in Region XIII**, with identification number **DICT 13-2026-007**.
- 1.2 The Project is composed of a single lot as provided in the **BDS**, the details of which are described in Section VII. Technical Specifications.

2) Source of Funds

The **Department of Information and Communications Technology Region 13** has a budget or has received funds from the **Continuing Fund FY 2025 Special Account in the General Fund - Free Public Internet Access Program** in the amount of **THREE MILLION NINE HUNDRED FORTY-FIVE THOUSAND EIGHT HUNDRED EIGHTY-ONE PESOS ONLY (PHP 3,945,881.00)**. It intends to apply part of the funds received for this Project to cover eligible payments under the contract.

3) Corrupt, Fraudulent, Collusive, and Coercive Practices

- 3.1 Unless otherwise specified in the **BDS**, the Procuring Entity, as well as the Bidders and Suppliers, shall observe the highest standard of ethics during the procurement and execution of the contract. In pursuance of this policy, the Procuring Entity:
 - a)——defines, for purposes of this provision, the following terms under existing laws, rules, and regulations:
 - i) “corrupt practice” means an act by which officials in the public or private sectors improperly and unlawfully enrich themselves, others, or induce others to do so, by misusing the position in which they are placed, and includes the offering, giving, receiving, or soliciting of anything of value to influence the action of any such official in the procurement process or in contract execution; entering, on behalf of the government, into any contract or transaction manifestly and grossly disadvantageous to the same, whether or not the public officer profited or will profit thereby, and similar acts as provided in RA No. 3019.
 - ii) “fraudulent practice” means a misrepresentation of facts for purposes of influencing a procurement process or the execution of a

contract to the detriment of the Procuring Entity, which includes collusive practices among Bidders (prior to or after bid submission) designed to establish bid prices at artificial, non-competitive levels and to deprive the Procuring Entity of the benefits of free and open competition.

- iii) “Collusive practices” means a scheme or arrangement between two or more Bidders, with or without the knowledge of the Procuring Entity, designed to establish bid prices at artificial, non-competitive levels.
- iv) “coercive practices” means harming or threatening to harm, directly or indirectly, persons, or their property to influence their participation in a procurement process, or affect the execution of a contract;
- v) “obstructive practice” is
 - a) deliberately destroying, falsifying, altering or concealing of evidence material to administrative proceedings or investigation or making false statements to investigators in order to materially impede administrative proceedings or investigation of the Procuring Entity or any foreign government/foreign or international financing institution relative to allegations of a corrupt, fraudulent, coercive, or collusive practice; and/or threatening, harassing, or intimidating any party to prevent the latter from disclosing its knowledge of matters relevant to the administrative proceedings or investigation or from pursuing such proceedings or investigation; or
 - b) acts intended to materially impede the exercise of the inspection and audit rights of the Procuring Entity or any foreign government/foreign or international financing institution herein.
- b) Undertakes to reject a proposal for award upon *prima facie* determination that the Bidder recommended for award has engaged in any of the prohibited practices mentioned in this Clause for purposes of competing for the contract.

3.2 Further, the **Department of Information and Communications Technology Region 13** will seek to impose the maximum civil, administrative, and/or criminal penalties available under applicable laws on individuals and organizations deemed to be involved in any of the practices mentioned in ITB Clause 3.1(a).

- 3.3 Furthermore, the Funding Source and the Procuring Entity reserve the right to inspect and audit records and accounts of a Bidder or Supplier in the bidding for and performance of a contract themselves or through independent auditors as reflected in the GCC Clause 3.

4) Conflict of Interest

- 4.1 All Bidders found to have conflicting interests shall be disqualified to participate in the procurement at hand, without prejudice to the imposition of appropriate administrative, civil, and criminal sanctions. A Bidder may be considered to have conflicting interests with another Bidder in any of the events described in paragraphs (a) through (c) below and a general conflict of interest in any of the circumstances set out in paragraphs (d) and (f) below:

- a) A Bidder has controlling shareholders or beneficial owners in common with another Bidder;
- b) A Bidder receives or has received any direct or indirect subsidy from any other Bidder;
- c) A Bidder has the same legally authorized representative as that of another Bidder for purposes of this bid;
- d) A Bidder has a relationship, directly or through third parties, that puts them in a position to have access to information about or influence on the bid of another Bidder or influence the decisions of the Procuring Entity regarding this bidding process; This may include a firm or an organization that lends, or temporarily seconds, its personnel to firms or organizations that are engaged in consulting services for the preparation related to procurement for or implementation of the project, if the personnel would be involved in any capacity on the same project;
- e) A Bidder who participated as a consultant in the preparation of the design or technical specifications of the Goods and related services that are the subject of the bid.
- f) A Bidder who lends, or temporarily seconds, its personnel to firms or organizations which are engaged in consulting services for the preparation related to procurement for or implementation of the project, if the personnel would be involved in any capacity on the same project.

- 4.2 All Bidding Documents shall be accompanied by an omnibus sworn statement of the Bidder that it is not related, by consanguinity or affinity up to the third level, to the HoPE, Procurement Agent (if engaged), the head of the Project Management Office (PMO), the End-User or Implementing Unit or any members of the Bids and Awards Committee (BAC), Technical Working Group (TWG), and BAC Secretariat.

4.3 The Bidder shall also disclose the ultimate beneficial ownership of an entity. Failure to comply shall be a ground for the automatic disqualification of the bid in consonance with Section 59 of the IRR. For this reason, relation to the aforementioned persons within the third civil degree of consanguinity or affinity shall automatically disqualify the Bidder from participating in the procurement of contracts of the Procuring Entity notwithstanding the act of such persons inhibiting themselves from the procurement process. This Clause shall apply to the following persons and affiliates:

- a) In the case of individuals or sole proprietorships, to the Bidders and their spouses;
- b) In the case of partnerships, to the partnership itself and its partners;
- c) In the case of cooperatives, to the cooperative itself and members of the board of directors, general manager or chief executive officer;
- d) A partnership, joint venture or consortium which is blacklisted or which has blacklisted member/s or partner/s, as well as a person or entity who is a member of a blacklisted joint venture or consortium, are, likewise not allowed to participate in any government procurement during the period of suspension or blacklisting; and
- e) In the case of corporations, a single stockholder, together with their relatives up to the third civil degree of consanguinity or affinity, and their assignees, holding at least twenty percent (20%) of the shares therein, its chairperson and president, shall be blacklisted after they have been determined to hold the same controlling interest in a previously blacklisted corporation or in two corporations that have been blacklisted; the corporations of which they are part of shall also be blacklisted.

5) Eligible Bidders

5.1 Only Bids found to be legally, technically, and financially eligible will be evaluated. For procurement of Goods, the following persons shall be eligible to participate in this bidding:

- a) Duly-licensed Filipino citizens or sole proprietorships;
- b) Partnerships duly organized under the laws of the Philippines and of which at least sixty percent (60%) of the interest belongs to citizens of the Philippines;

- c) Corporations duly organized under the laws of the Philippines, and of which at least sixty percent (60%) of the outstanding capital stock belongs to citizens of the Philippines;
 - d) Cooperatives duly organized under the laws of the Philippines; and
 - e) Persons or entities forming themselves into a Joint Venture (JV), i.e., a group of two (2) or more persons or entities that intend to be jointly and severally responsible or liable for a particular contract: Provided, however, that Filipino ownership or interest of the JV concerned shall be at least sixty percent (60%). For this purpose, Filipino ownership or interest shall be based on the contributions of each of the members of the joint venture as specified in their Joint Venture Agreement (JVA); Provided, further, that the primary purpose of each member of the JV must be similar to or related with the requirements of the project to be bid out.
- 5.2 GOCCs may be eligible to participate only if they can establish that they (a) are legally and financially autonomous, (b) operate under commercial law, and (c) are not attached agencies of the Procuring Entity.
- 5.3 The Bidder must have completed, within a period of three (3) years from the submission of the bid, unless a shorter period is indicated in the Invitation to Bid and **BDS**, a Single Largest Completed Contract (SLCC) that is similar to the procurement project to be bid, and whose value must be equivalent to at least fifty percent (50%) of the ABC, adjusted to current prices using the Philippine Statistics Authority (PSA) consumer price indices.
- 5.4 If the **Department of Information and Communications Technology Region 13** determines that it is necessary to adopt a different SLCC requirement to ensure broader Bidder participation while establishing their technical capacity, it may allow Bidders to present a combination of contracts completed within the same period, provided their total value is at least fifty percent (50%) of the ABC, thus:
- a) The Bidder should have completed at least one (1) similar contract amounting to at least 25% of the ABC; and
 - b) The Bidder should have completed other contracts, whether similar or not, with an aggregate amount of at least 25% of the ABC.
- 5.5 The Bidder must submit a computation of its Net Financial Contracting Capacity (NFCC), which must be at least equal to the ABC to be bid, calculated as follows:
- NFCC = [(Current assets minus current liabilities) (15)] minus the value of all outstanding or uncompleted portions of the projects under ongoing contracts,

including awarded contracts yet to be started coinciding with the contract to be bid.

The values of the domestic Bidder's current assets and current liabilities shall be based on the latest Audited Financial Statements (AFS) submitted to the BIR not earlier than two (2) years prior to date of bid submission.

For purposes of computing the foreign Bidders' NFCC, the value of the current assets and current liabilities shall be based on their latest AFS prepared in accordance with International Financial Reporting Standards.

If the Bidder opts to submit a committed Line of Credit, it must be at least equal to ten percent (10%) of the ABC to be bid. Provided that, if issued by a foreign bank, it shall be confirmed or authenticated by a local bank.

6) Bidder's Responsibilities

- 6.1 The Bidder or its duly authorized representative shall submit an omnibus sworn statement, in the form prescribed in Section VIII. Philippine Bidding Document Related Forms, as required in ITB Clause 12.1(viii).
- 6.2 Before submitting their bids, the Bidder is deemed to be knowledgeable with all existing laws, decrees, ordinances, acts and regulations of the Philippines which may affect this Project in any way.
- 6.3 The Bidder undertook the following responsibilities:
 - a) Took steps to carefully examine and ensure full understanding and comprehension of the Bidding Documents, its requirements, clauses, and provisions;
 - b) Acknowledged all conditions, local, or otherwise, affecting the implementation of the contract;
 - c) Made an estimate of the facilities available and needed for the contract to be bid, if any;
 - d) Complied with the responsibility to inquire, or secure the Supplemental Bid Bulletin(s) as provided under ITB Clause 10.4;
 - e) Ensured that it is not "blacklisted" or barred from bidding by the Government of the Philippines (GoP) or any of its agencies, offices, corporations, or LGUs, including foreign government, or foreign or international financing institutions whose blacklisting rules have been recognized by the GPPB; by itself or by reason of its relation, membership, association, affiliation, or controlling interest with another blacklisted person or entity;

- f) Ensured that each of the documents submitted in satisfaction with the bidding requirements is an authentic copy of the original, complete, and that all statements and information provided therein are true and correct;
- g) Authorized the HoPE or its duly authorized representative/s to verify all the documents submitted;
- h) Ensured that the signatory is the duly authorized representative of the Bidder, and granted full power and authority to do, execute, and perform any and all acts necessary to participate, submit the bid, to sign, and execute the ensuing contract, accompanied by the duly-notarized Special Power of Attorney, Board, or Partnership Resolution, or Secretary's Certificate, whichever is applicable;
- i) Complied with the disclosure provision under Section 81 and 82 of RA No. 12009 and its IRR, in relation to other provisions of RA 3019;
- j) Complied with existing labor laws and standards, in the case of procurement of services. Moreover, the Bidder undertakes to:
 - i) Ensure the entitlement of workers to wages, hours of work, safety and health and other prevailing conditions of work as established by national laws, rules and regulations; or Collective Bargaining Agreement (CBA); or arbitration award, if and when applicable.

In case there is a finding by the Procuring Entity or the Department of Labor and Employment (DOLE) of underpayment or non-payment of workers' wages and wage-related benefits, the Bidder agrees that the performance security or portion of the contract amount shall be withheld in favor of the complaining workers pursuant to appropriate provisions of RA No. 12009, without prejudice to the institution of appropriate actions under the Labor Code, as amended, and other social legislations.

- ii) Comply with Occupational Safety and Health Standards (OSHS) and correct deficiencies, if any.

In case of imminent danger, injury, or death of the worker, the Bidder undertakes to suspend contract implementation pending clearance to resume from the DOLE Regional Office, in compliance with the Work Stoppage Order; and

- iii) Inform the workers of their conditions of work, labor clauses under the contract specifying wages, hours of work, and other benefits under prevailing national laws, rules and regulations; or

CBA; or arbitration award, if and when applicable, through posting in two (2) conspicuous places in the establishment's premises.

- k) Ensured that it did not give or pay, directly or indirectly, any commission, amount, fee, or any form of consideration, pecuniary or otherwise, to any person or official, personnel, or representative of the government in relation to any procurement project or activity.
- l) Examined all instructions, forms, terms, and specifications in the Bidding Documents.
- m) Determined and complied with all matters pertaining to the contract to be bid, including but not limited to: (i) the location and the nature of this Project; (ii) climatic conditions; (iii) transportation facilities; and (iv) other factors that may affect the cost, duration, and execution or implementation of this Project.
- n) Ensured that all information in the Bidding Documents, including bid or supplemental bid bulletin/s issued, are correct and consistent. The Procuring Entity shall not assume any responsibility regarding erroneous interpretations or conclusions by the prospective or eligible Bidder out of the data furnished by the Procuring Entity.

Failure to observe any of the above responsibilities shall be at the risk of the Bidder concerned.

- 6.4 Further, the Bidder shall bear all costs associated with the preparation and submission of its Bid, and the Procuring Entity shall in no case be responsible or liable for those costs, regardless of the conduct or outcome of the bidding process.

In case of failure of bidding, the Bidding Documents fee may be applied in the re-bidding for the same Project.

- 6.5 Furthermore, the Bidder should be aware that the Procuring Entity will accept bids only from those that have paid the applicable fee for the Bidding Documents at the office indicated in the Invitation to Bid.

7) Origin of Goods

Unless otherwise indicated in the **BDS**, there is no restriction on the origin of Goods other than those prohibited by a decision of the United Nations (UN) Security Council taken under Chapter VII of the Charter of the UN.

8) Subcontracts

- 8.1 Subcontracting is **NOT ALLOWED**.

B. Contents of Bidding Documents

9) Pre-Bid Conference

- 9.1 If so specified in the **BDS**, a pre-bid conference shall be held either at the Procuring Entity's physical address and/or online through videoconferencing, webcasting, or similar technology, or a combination thereof, on the date indicated therein, to clarify and address the Bidders' questions on the technical and financial components of this Project.
- 9.2 The pre-bid conference shall be held at least twelve (12) calendar days before the deadline for the submission and receipt of bids, but not earlier than seven (7) calendar days from the posting of the invitation to bid and other bidding documents in the PhilGEPS.
- 9.3 Bidders are highly encouraged to attend the pre-bid conference to fully understand the Procuring Entity's requirements. While non-attendance of the Bidder will in no way prejudice its bid, the Bidder is deemed to know any changes and/or amendments to the Bidding Documents, as may be provided in the Supplemental Bid Bulletin.

The proceedings of the pre-bid conference shall be recorded, and the corresponding minutes shall be prepared not later than five (5) calendar days after the pre-bid conference. The minutes shall be made available to prospective Bidders not later than five (5) days upon written request.

- 9.4 Decisions of the BAC amending any provision of the Bidding Documents shall be issued in writing through a Supplemental Bid Bulletin at least seven (7) calendar days before the deadline for the submission and receipt of bids.

10) Clarification and Amendment of Bidding Documents

- 10.1 Prospective Bidders may request for clarification on and/or interpretation of any part of the Bidding Documents. Such request must be in writing and submitted to the DICT13BAC of the **Department of Information and Communications Technology Region 13** at the address or electronic mail indicated in the **BDS** or through the electronic bidding facility of PhilGEPS, as may be applicable, at least ten (10) calendar days before the deadline set for the submission and receipt of Bids.
- 10.2 The DICT13BAC shall respond to the said request by issuing a Supplemental Bid Bulletin duly signed by the BAC Chairperson. It shall be made available to all those who have properly secured the Bidding Documents, at least seven (7) calendar days before the deadline for the submission and receipt of Bids.

- 10.3 Supplemental Bid Bulletins may also be issued upon the Procuring Entity's initiative for purposes of clarifying or modifying any provision of the Bidding Documents not later than seven (7) calendar days before the deadline for submission and receipt of Bids. Any modification to the Bidding Documents shall be identified as an amendment.
- 10.4 Any Supplemental Bid Bulletin issued by the DICT13BAC shall also be posted in the PhilGEPS, in any conspicuous place in the premises of the Procuring Entity, and on the website or social media platforms of the Procuring Entity, if available, or such other channels as may be authorized by the GPPB. It shall be the responsibility of all prospective Bidders, including those who have properly secured the Bidding Documents, to inquire and secure Supplemental Bid Bulletins that may be issued by the BAC. However, Bidders who have submitted bids before the issuance of the Supplemental Bid Bulletin must be accordingly informed by the BAC and be allowed to modify or withdraw their bids prior to the deadline for the submission and receipt of bids in accordance with ITB Clause 21.

C. Preparation of Bids

11) Language of Bids

The eligibility requirements or statements, the bids, and all other documents to be submitted to the DICT13BAC must be in English. If the eligibility requirements or statements, the bids, and all other documents submitted to the DICT13BAC are in foreign language other than English, it must be accompanied by a translation of the documents in English. The documents shall be translated by the relevant foreign government agency, the foreign government agency authorized to translate documents, or a registered translator in the foreign Bidder's country. The Bidder shall cause the authentication of the translated documents and shall be authenticated by the appropriate Philippine foreign service establishment or post or the equivalent office having jurisdiction over the foreign Bidder's affairs in the Philippines. The English translation shall govern, for purposes of interpretation of the bid.

However, for Contracting Parties to the Apostille Convention, the documents shall be authenticated through an apostille by the Competent Authority, as defined in Section 20.9.2 of [the] IRR, except for countries identified by the DFA that will still require legalization (red ribbon) by the relevant Embassy or Consulate.

12) Documents Comprising the Bid: Technical and Financial Components

12.1 The first bid envelope shall contain the following technical documents, including the eligibility documents:

- i) PhilGEPS Certificate of Registration (Platinum Membership);
- ii) Statement of SLCC;

- iii) NFCC Computation or committed Line of Credit (LoC);
- iv) Statement of all its ongoing government and private contracts, including contracts awarded but not yet started, if any, whether similar or not similar in nature and complexity to the contract to be bid;
 - i. The statement shall be supported by any of the following mandatory documents:
 - 1. Notice of Award;
 - 2. Contract Agreement;
 - 3. Purchase Order;
 - 4. Notice to Proceed
- v) *[if applicable]* JVA) or in the absence of a JVA, duly notarized statements from all potential JV partners stating that they will enter into and abide by the provisions of the JVA in the event that the bid is successful;
- vi) Bid Security in the prescribed form and amount in accordance with ITB Clause 16, and validity period under ITB Clause 15;
- vii) Technical Specifications, which may include production or delivery schedule, manpower requirements, or after-sales service or parts, if applicable;
- viii) Omnibus Sworn Statement; and
- ix) For foreign Bidders claiming eligibility by reason of their country's extension of reciprocal rights to Filipinos, a certification from the relevant government office of their country stating that Filipinos are allowed to participate in their government procurement activities for the same item or product.

12.2 The second bid envelope shall contain the following financial documents:

- a) Bid Form which includes the Bid price;
- b) Price Schedules in accordance with ITB Clause 13.1; and
- c) *[if applicable]* Certificate of Domestic Preference, in accordance with ITB Clause 25.

12.3 Whenever necessary, modifications may be made to the foregoing components specifically for major and specialized procurement to suit the particular needs of the Procuring Entity, subject to the approval of the GPPB.

12.4 All bids that exceed the ABC shall not be accepted. Unless otherwise indicated in the **BDS**, for foreign-funded procurement, the ABC shall be applied as the ceiling to bid prices provided the following conditions are met:

- a) Bidding Documents are obtainable free of charge on a freely accessible website. If payment of Bidding Documents is required by the Procuring Entity, payment could be made upon the submission of bids.
- b) The Procuring Entity has procedures in place to ensure that the ABC is based on recent estimates made by the responsible unit of the Procuring Entity and that the estimates reflect the quality, supervision and risk, and inflationary factors, as well as prevailing market prices, associated with the types of works or goods to be procured.
- c) The Procuring Entity has trained cost estimators in estimating prices and analyzing bid variances.
- d) The Procuring Entity has established a system to monitor and report bid prices relative to ABC and engineer's/procuring entity's estimate.
- e) The Procuring Entity has established a monitoring and evaluation system for contract implementation to provide feedback on actual total costs of goods and works.

However, the GoP and the foreign government, or foreign or international financing institutions may agree to waive the foregoing conditions.

13) Bid Prices

13.1 The Bidder shall accomplish the Price Schedule Form as prescribed by the Procuring Entity, which may include the following details:

- a) For Goods offered from within the Philippines:
 - i) The price of the Goods quoted EXW (ex works, ex factory, ex warehouse, ex showroom, or off-the-shelf, as applicable);
 - ii) The cost of all customs duties and sales and other taxes already paid or payable;
 - iii) The cost of transportation, insurance, and other costs incidental to delivery of the Goods to their final destination; and
 - iv) The price of other (incidental) services, if any, listed in the **BDS**.
- b) For Goods offered from abroad:

- i) Unless otherwise stated in the **BDS**, the price of the Goods shall be quoted Delivery Duty Paid (DDP) with the place of destination in the Philippines as specified in the **BDS**. In quoting the price, the Bidder shall be free to use transportation through carriers registered in any eligible country. Similarly, the Bidder may obtain insurance services from any eligible source country.
 - ii) The price of other (incidental) services, if any, listed in the **BDS**.
 - c) For Services, based on the form which may be prescribed by the Procuring Entity, in accordance with existing laws, rules and regulations.
- 13.2 The Bidder shall accomplish the appropriate Price Schedule included herein, stating the unit prices, total price per item, the total amount and the expected countries of origin of the Goods to be supplied under this Project. The Bidder shall fill in rates and prices for all items of the Goods described in the Price Schedule, which shall be presented and computed using up to two (2) decimal places, unless otherwise indicated in the **BDS**.
- 13.3 If the Instructions to Bidders specifically allow partial bids, bids not addressing or providing all of the required items in the Bidding Documents including, where applicable, the Price Schedule, shall be considered non-responsive and shall be automatically disqualified. However, when no price or a zero (0) or a dash (-) is indicated in a required item in the bid form, the same shall be construed that it is being offered for free to the Government, except those required by law or regulations to be provided for.

The terms Ex Works (EXW), Cost, Insurance and Freight (CIF), Cost and Insurance Paid to (CIP), (DDP), and other trade terms used to describe the obligations of the parties, shall be governed by the rules prescribed in the current edition of the International Commercial Terms (INCOTERMS) published by the International Chamber of Commerce, Paris.

- 13.4 Prices quoted by the Bidder shall be fixed during the Bidder's performance of the contract and not subject to variation or price escalation on any account. A bid submitted with an adjustable price quotation shall be treated as non-responsive and shall be rejected.

14) Bid Currencies

- 14.1 Prices shall be quoted in the following currencies:

- a) For Goods that the Bidder will supply from within the Philippines, the prices shall be quoted in Philippine Peso.

- b) For Goods that the Bidder will supply from outside the Philippines, the prices may be quoted in the local or tradeable currency/ies accepted by the *Bangko Sentral ng Pilipinas* (BSP), as stated in the **BDS**. However, for purposes of bid evaluation, bids denominated in foreign currencies shall be converted to Philippine currency based on the exchange rate published in the BSP Daily Reference Exchange Rate Bulletin on the day of the bid opening.⁵

14.2 If so allowed in accordance with ITB Clause 14.1, the Procuring Entity, for purposes of bid evaluation and comparing the bid prices, will convert the amounts in various currencies in which the bid price is expressed to Philippine Peso at the foregoing exchange rates.

14.3 Unless otherwise specified in the **BDS**, payment of the contract price shall be made in Philippine Peso.

15) Bid Validity

15.1 Bids shall remain valid for the period specified in the **BDS** which shall not exceed one hundred twenty (120) calendar days from the date of the opening of bids.

15.2 Should it become necessary to extend the validity of the bids and the bid securities beyond one hundred twenty (120) calendar days, the Procuring Entity concerned shall request in writing all those who submitted bids for such extension before the expiration date therefore. Bidders, however, shall have the right to refuse to grant such extension without forfeiting their Bid Security.

16) Bid Security

16.1 The Bidder shall at its option, submit a Bid Security in the form and amount as stated in the **BDS**, which may include the following:

Form of Bid Security	Amount of Bid Security (Not less than the required percentage of the ABC)
a) Cash or cashier's or manager's check issued by a bank.	Two Percent (2%)
d) Bid Securing Declaration	Not Applicable

The Bid Security shall be denominated in Philippine Peso and posted in favor of the Procuring Entity.

- 16.2 The Bid Security should be valid for the period specified in the **BDS**. Any bid not accompanied by an acceptable Bid Security shall be considered as non-responsive and rejected by the Procuring Entity.
- 16.3 In no case shall the Bid Security be returned later than the expiration of the bid validity period indicated in the **BDS**, unless it has been extended. In case the Bidder is required to extend its bid validity, the Bidder may, at its discretion, substitute a Bid Securing Declaration for the extended period as a replacement of its Bid Security; Provided, that the option to substitute is indicated in the **BDS**.
- 16.4 Upon signing and execution of the contract pursuant to ITB Clause 30, and the posting of the performance security pursuant to ITB Clause 31, the Bid Security of the successful Bidder will be discharged, but in no case later than its validity period as indicated in the ITB Clause 16.2.
- 16.5 The Bid Security may be forfeited based on any of the following grounds, as provided under Rule VIII, X, XI, and XXI of the IRR.
- a) if a Bidder:
- i) Withdraws its bid during the period of bid validity specified in ITB Clause 15;
 - ii) Does not accept the correction of errors pursuant to ITB Clause 26.5(b) (arithmetical error);
 - iii) Has a finding against the veracity of any of the documents submitted as stated in ITB Clause 27.2;
 - iv) Submits eligibility requirements containing false information or falsified documents;
 - v) Submits bids that contain false information or falsified documents, or the concealment of such information in the bids to influence the outcome of eligibility screening or any other stage of the public bidding;
 - vi) Allows the use of one's name, or uses the name of another for purposes of public bidding;
 - vii) Refuses to accept an award or enter into contract with the Government without justifiable cause, after the Bidder had been adjudged as having submitted the Lowest Calculated Responsive Bid (LCRB);

- viii) Refuses or fails to post the required performance security within the prescribed time;
 - ix) Refuses to clarify or validate in writing its bid during post-qualification within a period of seven (7) calendar days from receipt of the request for clarification;
 - x) Has any documented attempt by a Bidder to unduly influence the outcome of the bidding in its favor; or
 - xi) Commits other acts that tend to defeat the purpose of the competitive bidding, Competitive Dialogue, Unsolicited Offer with Bid Matching and Limited Source Bidding, such as but not limited to habitually withdrawing from bidding, submitting late Bids or patently insufficient bid, for at least three (3) times within a year, except for valid reasons.
- b) If a winning Bidder:
- i) Fails to sign the contract in accordance with ITB Clause 30;
 - ii) Fails to furnish performance security in accordance with ITB Clause 31; or
 - iii) Fails to enter into a joint venture after the bid is declared successful, in the case of potential JV partners.

17) Format and Signing of Bids

- 17.1 Bidders shall submit their bids through their duly authorized representative using the appropriate forms provided in Section VIII. Philippine Bidding Document Related Forms on or before the deadline specified in ITB Clause 19 in two (2) separate sealed bid envelopes which shall be submitted simultaneously, whether through manual or online submission. The first shall contain the technical component of the bid, including the eligibility requirements under ITB Clause 12, and the second shall contain the financial component of the bid. This shall also be observed for each lot in the case of lot procurement.
- 17.2 Forms as mentioned in ITB Clause 17.1 must be completed without any alterations to their format. No substitute form shall be accepted.
- 17.3 Each and every page of the Bid Form, including the Price Schedule, under Section VIII hereof, shall be signed by the duly authorized representative/s of the Bidder. Failure to do so shall be a ground for the rejection of the bid.

- 17.4 Any insertions, erasures, or overwriting shall be valid only if they are signed or initialed by the duly authorized representative/s of the Bidder.

18) Sealing and Marking of Bids

- 18.1 Each Bidder shall submit four (4) copies of the first and second components of its Bid.
- 18.2 Bidders shall enclose their technical documents described in ITB Clause 12 in one sealed envelope marked "TECHNICAL COMPONENT", and the financial component in another sealed envelope marked "FINANCIAL COMPONENT", sealing them all in an outer envelope marked "BID".
- 18.3 The Bid as indicated in the Bidding Documents shall be typed or written in ink and shall be signed by the Bidder or its duly authorized representative/s.
- 18.4 All envelopes shall:
- a) contain the name of the contract to be bid in capital letters;
 - b) bear the name and address of the Bidder in capital letters;
 - c) be addressed to the Procuring Entity's BAC in accordance with ITB Clause 1.1;
 - d) bear the specific identification of this bidding process indicated in the ITB Clause 1.1; and
 - e) bear a warning "DO NOT OPEN BEFORE..." the date and time for the opening of bids, in accordance with ITB Clause 19.
- 18.5 For manually submitted bid envelopes that are not properly sealed and marked, as required in the Bidding Documents, the same shall be accepted; Provided, That the Bidder or its duly authorized representative shall acknowledge such condition of the bid as submitted. On the other hand, unsealed or unmarked bid envelopes shall be rejected.

The BAC shall assume no responsibility for misplaced or lost contents of the improperly sealed or marked bid, or for its premature opening.

D. Submission and Opening of Bids

19) Deadline for Submission of Bids

Bids must be received by the Procuring Entity's BAC at the address indicated in the Invitation to bid on or before the date and time indicated in the **BDS**.

20) Late Bids

Bids, including the eligibility requirements, submitted after the deadline shall be rejected by the BAC. The BAC shall record in the Minutes of the Meeting the submission and opening of bids, the Bidder's name, its representative, and the time the late bid was submitted.

21) Modification and Withdrawal of Bids

21.1 Bidders may modify their bids before the deadline for the submission and receipt of bids.

- a) For manual submission and receipt of bids, the Bidders shall not be allowed to retrieve their original bid but shall only be allowed to submit the bid modification by sending another bid, equally sealed, properly identified, linked to their original bid, marked as a "modification," thereof, and stamped "received" by the BAC. Bid modifications received after the applicable deadline shall not be considered and shall be returned to the Bidder unopened.
- b) For online submission of bids, the Bidders shall not be allowed to retrieve their original Bid, but shall only be allowed to submit the bid modification, send another Bid equally secured, properly identified labelled as a "modification" of the one previously submitted. The time indicated in the latest bid receipt page generated shall be the official time of submission. Bids modification submitted after the applicable deadline shall not be accepted.

21.2 Bidders may withdraw their bids in writing before the deadline for submission and receipt of bids. Withdrawal of bids after the applicable deadline shall be subject to appropriate sanctions as prescribed in the IRR.

Bidders may also express their intention not to participate in the bidding in writing, which should be received by the BAC before the deadline for submission and receipt of bids. Bidders that withdraw their bids shall no longer be allowed to submit another bid for the same contract, directly or indirectly.

21.3 No bid may be modified after the deadline for submission and receipt of bids. Further, no bid may be withdrawn in the interval between the deadline for submission and receipt of bids, and the expiration of bid validity specified by the Bidder in the Financial Bid Form. Withdrawal of bid during this interval shall result in the forfeiture of the Bidder's Bid Security pursuant to ITB Clause 16.5, and the imposition of administrative sanctions as prescribed by RA No. 12009, and without prejudice to the imposition of civil and criminal sanctions as provided under applicable laws.

- 21.4 Alternative Bids shall be rejected. For this purpose, Alternative Bid shall pertain to an offer made by a Bidder in addition or as a substitute to its original bid, which may be included as part of its original bid or submitted separately. A bid with options shall likewise be considered an Alternative Bid regardless of whether said bid proposal is contained in a single envelope or submitted in two (2) or more separate bid envelopes.
- 21.5 Each Bidder shall submit only one Bid, either individually or as a partner in a JV. Bidder who submits or participates in more than one bid (other than as a subcontractor if a subcontractor is permitted to participate in more than one bid) will cause all the proposals with the Bidder's participation to be disqualified. This shall be without prejudice to any applicable criminal, civil, and administrative penalties that may be imposed upon the persons and entities concerned.

22) Opening and Preliminary Examination of Bids

- 22.1 The BAC shall open the bids in public, immediately after the deadline for submission and receipt of bids, as specified in the **BDS**. In case the Bids cannot be opened as scheduled due to justifiable reasons, the BAC shall take custody of the submitted Bids and reschedule the opening of Bids on the next working day or at the soonest possible time, through the issuance of a notice of postponement to be posted on the PhilGEPS website and the website of the Procuring Entity concerned.
- 22.2 The manner of opening of the bids for Goods shall depend on the award criterion to be adopted as follows:
- a) For LCRB, the BAC shall open the technical and financial proposals on the same day; and
- 22.3 The Procuring Entity shall prepare the minutes of the proceedings of the bid opening that shall include, as a minimum: (a) names of Bidders, their bid price (per lot, if applicable, and/or including discount, if any), bid security, findings of preliminary examination, and whether there is a withdrawal or modification; and (b) attendance sheet. The BAC members shall sign the abstract of bids as read.
- 22.4 The Bidders or their duly authorized representatives may attend the opening of bids. The BAC shall ensure the integrity, security, and confidentiality of all submitted bids. The Abstract of Bids, as read, and the minutes of the bid opening shall be made available to the public, upon written request and payment of a specified fee to recover the cost of materials.
- 22.5 To ensure transparency and accurate representation of the bid submission, the BAC Secretariat shall notify in writing all Bidders whose bids it has received through its PhilGEPS-registered physical address or official e-mail

address. The said notice shall be issued within seven (7) calendar days from the date of the bid opening.

E. Evaluation and Comparison of Bids

23) Process to be Confidential

23.1 Members of the BAC, its staff and personnel, Secretariat, and TWG, as well as Observers, are prohibited from making or accepting any communication with any Bidder regarding the evaluation of their bids until the issuance of the Notice of Award, unless otherwise allowed in ITB Clause 24.

23.2 Any effort by a Bidder to influence the Procuring Entity in its decision in respect of bid evaluation, bid comparison or contract award will result in the rejection of the bid.

24) Clarification of Bids

To assist in the evaluation, comparison, and post-qualification of the bids, the Procuring Entity may ask in writing any Bidder for a clarification of its bid. All responses to requests for clarification shall be in writing. Any clarification submitted by a Bidder in respect to its bid that is not in response to the request of the Procuring Entity shall not be considered.

25) Domestic Preference

25.1 The Procuring Entity shall give priority and preference to Philippine products and services. The preference and priority for Philippine products shall be guaranteed at all levels of the procurement process, including raw materials, ingredients, supplies, or fixtures.

25.2 For a period of ten (10) years from the effectivity of RA No. 11981 or the "*Tatak Pinoy* (Proudly Filipino) Act," and for Philippine products and services in sectors and economic activities covered by the prevailing *Tatak Pinoy* Strategy, the Procuring Entity is mandated to award the contract to the domestic Bidder for Philippine products and services in sectors and economic activities covered by the prevailing *Tatak Pinoy* Strategy (TPS).

Domestic Bidder, for purposes of this provision, refers to any person or entity offering unmanufactured articles, materials, or supplies grown or produced in the Philippines, or manufactured articles, materials, or supplies manufactured or to be manufactured in the Philippines substantially from articles, materials, or supplies that are or will be produced or manufactured in the Philippines, as the case may be.

25.3 After the said ten-year period, the domestic preference shall be subject to a margin of preference to be determined by the *Tatak Pinoy* Council which shall not be lower than fifteen percent (15%).

- 25.4 For products and services governed by the TPS, the domestic preference in procurement shall be in accordance with the IRR or guidelines issued for the *Tatak Pinoy Act*.
- 25.5 The Procuring Entity shall award the Project to the domestic Bidder if the bid is not more than twenty-five percent (25%) in excess of the lowest foreign bid. The margin of preference provided herein shall be subject to periodic review and adjustment by the GPPB, as may be necessary.
- 25.6 A Domestic Bidder can only claim preference if it secures from the appropriate agency a certification that the articles forming part of its bid are substantially composed of articles, materials, or supplies grown, produced, or manufactured in the Philippines.
- 25.7 The preference herein established may be waived should any of the following conditions be present as provided in the **BDS**:
- a) Where domestic production is insufficient or unavailable in the required commercial quantities;
 - b) Where the specific or desired quality is not met;
 - c) Where domestic preference will result in inconsistencies with the Philippines' obligations under treaty or international or executive agreements; or
 - d) Other analogous circumstances.

26) Detailed Evaluation and Comparison of Bids

- 26.1 The Procuring Entity's evaluation of bids shall be based on the bid price quoted in the Bid Form, which includes the Price Schedule.
- 26.2 The Procuring Entity will undertake the detailed evaluation and comparison of the bids which have passed the opening and preliminary examination of bids, pursuant to ITB Clause 22, to determine the Lowest Calculated Bid (LCB).
- 26.3 The award criterion shall be determined as follows:
- a) For LCB
 - i) The detailed evaluation of the financial component of the bids, to establish the correct calculated prices of the bids; and

- ii) The ranking of the total bid prices as calculated from the lowest to the highest, where the bid with the lowest price shall be identified as the LCB.

26.4 The BAC shall immediately conduct a detailed evaluation of all bids using non-discretionary criteria in considering the following:

- a) Completeness of the bid. Unless the **BDS** allows partial bids, bids not addressing or providing all of the required items in the **BDS**, shall be considered non-responsive and, thus, automatically disqualified.

However, when no price or a zero (0) or a dash (-) is indicated in a required item in the bid form, the same shall be construed that it is being offered for free to the Government, except those required by law or regulations to be provided for; and

- b) Arithmetical corrections. The BAC shall apply arithmetical corrections on computational errors and omissions to enable proper comparison of all eligible bids. Bid corrections may also be considered if expressly allowed in the **BDS**. Any adjustment shall be calculated in monetary terms to determine the calculated prices.

26.5 Based on the detailed evaluation of bids, those that comply with the above-mentioned requirements shall be ranked in the ascending order of their total calculated bid prices, as evaluated and corrected for computational errors, discounts and other modifications, to identify the **LCB**. Total calculated bid prices, as evaluated and corrected for computational errors, discounts and other modifications, which exceed the ABC shall not be considered, unless otherwise indicated in the **BDS**.

26.6 The BAC shall evaluate all bids on an equal footing to ensure fair and competitive bid comparison. For this purpose, all Bidders shall be required to include in their bids the cost of all taxes, such as, but not limited to, value added tax (VAT), income tax, local taxes, and other fiscal levies and duties, whichever is applicable, as itemized in the bid form and reflected in the detailed estimates. Such bids, including said taxes, shall be the basis for bid evaluation and comparison.

26.7 If so indicated pursuant to ITB Clause 1.2, bids may be submitted for individual lots or for any combination thereof, provided that all bids and combinations of bids shall be received by the same deadline and opened and evaluated simultaneously so as to determine the Bid or combination of Bids offering the lowest calculated cost to the Procuring Entity. Bid prices quoted shall correspond to all items specified for each lot and to all quantities specified for each item of a lot. Bid Security as required by ITB Clause 16 shall be submitted for each contract (lot) separately. The basis for evaluation of lots is specified in **BDS** Clause 26.5.

- 26.8 In order to eliminate bias in evaluating the quality proposals, it is recommended that the highest and lowest scores for each Bidder for each criterion shall not be considered in determining the average scores of the Bidders, except when the evaluation is conducted in a collegial manner.

27) Post-Qualification

- 27.1 The BAC shall determine to its satisfaction whether the Bidder that is evaluated as having submitted the LCB as the case may be, complies with and is responsive to all the requirements and conditions specified in ITB Clauses 5, 12.1, and 12.2. The Bidder, within five (5) calendar days from receipt of notice from the BAC that it submitted the LCB shall submit all the eligibility documents supporting its PhilGEPS Certificate of Registration (Platinum Membership), its latest income and business tax returns filed for the preceding quarter which should not be earlier than two (2) quarters from the date of submission and receipt of bid, and other appropriate licenses and permits required by law and stated in the BDS.
- 27.2 Failure to submit any of the post-qualification requirements on time, or a finding against the veracity thereof, shall disqualify the Bidder for award; Provided, That in the event that a finding against the veracity of any of the documents submitted is made, it shall cause the forfeiture of the Bid Security.
- 27.3 The determination shall be based upon an examination of the documentary evidence of the Bidder's qualifications submitted pursuant to ITB Clauses 12.1 and 12.2, as well as other information as the Procuring Entity deems necessary and appropriate, using a non-discretionary "pass/fail" criterion, which shall be completed within a period of twelve (12) calendar days.
- 27.4 If the BAC determines that the Bidder with the LCB fails to meet the post-qualification criteria, it shall immediately notify the said Bidder in writing of its post-disqualification and the grounds for such determination.
- 27.5 Immediately after the BAC has notified the first Bidder of its post-disqualification, and notwithstanding any pending request for reconsideration thereof, the BAC shall initiate and complete the same post-qualification process on the Bidder with the second LCB. If the second Bidder passes the post-qualification and the request for reconsideration of the first Bidder has been denied, the second Bidder shall be post-qualified as the Bidder with the LCB.
- 27.6 If the second Bidder, however, fails the post-qualification, the procedure for post-qualification shall be repeated for the Bidder with the next LCB until the LCRB is determined for award, subject to the procedure of Notice and Execution of Award.

- 27.7 If the BAC determines that the Bidder with the LCB passes all the criteria for post-qualification, it shall declare the said bid as the LCRB.
- 27.8 Within a period not exceeding ten (10) calendar days from the determination and declaration through a resolution by the BAC of the LCRB and the recommendation of the award, the HoPE or its duly authorized representative shall approve or disapprove the said recommendation.
- 27.9 In case of approval, the HoPE or its duly authorized representative shall immediately issue the Notice of Award to the Bidder with the LCRB.

In the event that the approving authority shall disapprove the resolution on the award of the contract, such disapproval shall be based only on valid, reasonable, and justifiable grounds to be expressed in writing. A copy of the decision disapproving the resolution shall be furnished to the BAC and the Bidder.

28) Reservation Clause

- 28.1 Notwithstanding the eligibility or post-qualification of a Bidder and without incurring any liability, the HoPE or its duly authorized representative at any stage of the procurement, reserves the right to review its qualifications, reject any and all bids, declare a failure of bidding or not award the contract in the following situations:
- a) If it has reasonable grounds to believe that a misrepresentation has been made by the said Bidder, or that there has been a change in the Bidder's capability to undertake the project from the time it submitted its eligibility requirements.
 - b) Should such review uncover any misrepresentation made in the eligibility and bidding requirements, statements or documents, or any changes in the situation of the Bidder which will adversely affect its capability to undertake the Project so that it no longer meets the prescribed eligibility or bid evaluation criteria, the Procuring Entity shall consider the said Bidder as ineligible and disqualify it from participating further in the bidding process or being awarded the contract.
- 28.2 Based on any of the following grounds, the Procuring Entity reserves the right to reject any and all bids, declare a Failure of Bidding at any time prior to the contract award, or not to award the contract, without thereby incurring any liability, and make no assurance that a contract shall be entered into as a result of the bidding:
- a) If there is *prima facie* evidence of collusion between appropriate public officers or employees of the Procuring Entity, or between the BAC and

any of the Bidders, or if the collusion is between or among the Bidders themselves, or between a Bidder and a third party, including any act which restricts, suppresses or nullifies, or tends to restrict, suppress or nullify competition or influences or tends to influence the bidding process;

- b) If the BAC is found to have failed in complying with the applicable law or in following the prescribed bidding procedures; or
- c) If there are any justifiable and reasonable grounds where the award of the contract will not redound to the benefit of the government, in instances where (i) the physical and economic conditions have significantly changed so as to render the Project no longer economically, financially, or technically feasible as determined by the HoPE; (ii) the Project is no longer necessary as determined by the HoPE; and (iii) the source of funds for the Project has been withheld or reduced through no fault of the Procuring Entity.

F. Award of Contract

29) Contract Award

- 29.1 Subject to ITB Clause 27, the HoPE or its duly authorized representative shall award the contract to the Bidder whose bid has been determined to be the LCRB.
- 29.2 Prior to the expiration of the period of bid validity, the Procuring Entity shall notify the successful Bidder in writing that its bid has been accepted, through a Notice of Award duly received by the Bidder or its representative personally or sent by registered mail or electronically, receipt of which must be confirmed in writing within two (2) days by the Bidder with the LCRB and submitted personally or sent by registered mail or electronically to the Procuring Entity.
- 29.3 Within ten (10) calendar days from receipt by the winning Bidder of the Notice of Award, the following conditions should be complied with before the contract may be awarded:
 - a) Submission of the following documents:
 - i) Valid JVA, if applicable; or
 - ii) The SEC Certificate of Registration of the foreign corporation, if applicable.
 - b) Posting of the performance security in accordance with ITB Clause 31; and

- c) Signing of the contract as provided in ITB Clause 30.

29.4 At the time of contract award, the Procuring Entity shall not increase or decrease the quantity of goods originally specified in Section VI. Schedule of Requirements.

30) Signing of the Contract

30.1 Within ten (10) calendar days from receipt of the Notice of Award, the winning Bidder shall (i) post the required performance security, sign and date the contract, and return it to the Procuring Entity.

30.2 The Procuring Entity shall enter into a contract with the successful Bidder within the same ten (10) calendar day period, provided that all the documentary requirements are complied with.

30.3 The following documents shall form part of the contract:

- a) Contract Agreement;
- b) Bidding Documents;
- c) Winning Bidder's bid, including the technical and financial proposals, and all other documents/statements submitted (*e.g.*, Bidder's response to request for clarifications on the bid), including corrections to the bid, if any, resulting from the Procuring Entity's bid evaluation;
- d) Performance Security;
- e) Notice of Award of Contract; and
- f) Other contract documents that may be required by existing laws and/or specified in the **BDS**.

31) Performance Security

31.1 To guarantee the faithful performance of its obligations under the contract, the winning Bidder shall post a performance security prior to the signing of the contract. Furthermore, the successful Bidder shall be required to update the performance security posted before the issuance of an amendment to order if any.

31.2 Sectors enumerated under Section 76.1 of the IRR may be allowed to post a Performance Securing Declaration (PSD) as specified in the **BDS**.

- 31.3 The performance security shall be in any form selected by the Procuring Entity in the amount indicated in the **BDS**, which shall not be less than the percentage of the total contract price in accordance with the following price schedule:

Form of Performance Security	Amount of Performance Security (Not less than the Percentage of the Total Contract Price)
a. Cash or Cashier's or Manager's check issued by a bank.	Five percent (5%)

- 31.4 The performance security shall be denominated in Philippine Peso and posted in favor of the Procuring Entity, which shall be forfeited in the event it is established that the winning Bidder is in default in any of its obligations under the contract.

32) Notice to Proceed

The Procuring Entity shall issue the Notice to Proceed to the winning Bidder not later than three (3) calendar days from the date of approval of the contract by the appropriate signatories. All notices called for by the terms of the contract shall be effective only at the time of receipt thereof by the successful Bidder.

33) Protest Mechanism

Decisions of the BAC in all stages of procurement may be protested to the HoPE in accordance with Section 83 of the IRR of RA 12009.

Section III. Bid Data Sheet

Bid Data Sheet

ITB Clause	
1.1	The Procuring Entity is the Department of Information and Communications Technology Region 13. The Project title is Provision of Internet Access via Low Earth Orbit Satellite (PIALEOS) for Government Support in Barangay Halls and Public Transport Terminals in Region XIII. The project identification number is DICT 13-2026-007.
1.2	The number of lot(s): 2 lots
2	The Funding Source is: The GoP through the source of funding as indicated below for Continuing Fund FY 2025 Special Account in the General Fund - Free Public Internet Access Program in payment for the project is THREE MILLION NINE HUNDRED FORTY-FIVE THOUSAND EIGHT HUNDRED EIGHTY-ONE PESOS ONLY (PHP 3,945,881.00).
3.1	No further instructions.
5.4	The Bidder's SLCC, similar to the contract to be bid, should have been completed within the last three (3) years prior to the deadline for the submission and receipt of bids.
5.5	For this purpose, contracts similar to the Project shall be: Contracts involving the provision of internet connectivity services using fiber optic and/or satellite communication technologies, including the supply, installation, and management of ICT or IP-based network equipment.
7	No further instructions.
8.1	Subcontracting is NOT allowed.
8.4	Not Applicable"
9.1	The Procuring Entity will hold a pre-bid conference for this Project on June 8, 2026 at 02:00 PM at DICT Bldg., J. Rosales Avenue, Butuan City and through google meet via https://bit.ly/PreBid-007 .
10.1	The Procuring Entity's address is: Department of Information and Communications Technology-Region 13 DICT Building, J. Rosales Avenue, Butuan City 8600 BAC.caraga@dict.gov.ph 817-2011

12.1 (iv)	Statement of all its ongoing government and private contracts, including contracts awarded but not yet started, if any, whether similar or not similar in nature and complexity to the contract to be bid; i. The statement shall be supported by any of the following mandatory documents: 1. Notice of Award; 2. Contract Agreement; 3. Purchase Order; 4. Notice to Proceed.
12.4	The ABC is THREE MILLION NINE HUNDRED FORTY-FIVE THOUSAND EIGHT HUNDRED EIGHTY-ONE PESOS ONLY (PHP 3,945,881.00). Any bid with a financial component exceeding the amount shall not be accepted.
13.1(a)(iv)	No incidental services are required.
13.1(b)(i)	The price of the Goods shall be quoted DDP Department of Information and Communications Technology Region 13, J. Rosales Avenue, Butuan City .
13.1(b)(ii)	No incidental services are required
13.2	No further instructions.
14.1(b)	The Bid prices for Goods supplied from outside of the Philippines shall be quoted in Philippine Peso.
14.3	Payment shall be made in Philippine Peso.
15.1	Bids will be valid for 120 working days from the receipt of the NTP.
16.1	The Bid Security shall be in the form of a Bid Securing Declaration, and any of the following: 1) The amount of not less than 2% of the ABC, if bid security is in cash; 2) The amount of not less than 2% of the ABC, if bid security is in the cashier's check; 3) The amount of not less than 2% of the ABC, if bid security is in manager's check.
16.2	The Bid Security shall be valid until 120 working days from the receipt of the NTP.
16.3	In case of extension of bid validity and bid security validity period, Substitution of the bid security form is allowed. Bid Securing Declaration and the following forms may be used: a) Cash or Cashier's or Manager's Check issued by a Bank.
19	The address for the submission of Bids is DICT Building, J. Rosales Avenue, Butuan City. The deadline for the submission of Bids is June 22 ,2026, 12 noon.
22.1	The place of the bid opening is DICT Bldg., J. Rosales Avenue, Butuan City .

	The date and time of bid opening is June 22, 2026, 2:00 PM.
22.2(b)	Not applicable
25.7	No further instructions.
26.3(b)(i)	The quality component shall be assessed on the basis of criteria with corresponding numerical weights, which may include qualitative, environmental, or social aspects linked to the subject matter of the contract. These may include any or a combination of the following: • Quality and technical merit, including technical competence and a credible track record; • Aesthetic and functional design and characteristics; • Approach and methodology; • Accessibility; • Tools and equipment; • Social, environmental, economic, and innovative characteristics; • Organization, qualification, and experience of employees or staff assigned to perform the contract; • Ongoing contracts and work commitments; • After-sales service and technical assistance; • Delivery conditions, such as delivery period and delivery process; • Disposal measures; or • Other relevant criteria in relation to the subject Goods or Infrastructure Projects to be procured.
26.3(b)(iii)	Not applicable
26.3(c)(i)	Not applicable
26.5(a)	Partial bid is not allowed. The goods are grouped in a single lot and the lot shall not be divided into sub-lots for the purpose of bidding, evaluation, and contract award. In all cases, the NFCC computation, if applicable, must be sufficient for the lot or contract to be awarded to the Bidder.
26.5(b)	Arithmetical correction is not allowed.
26.6	No further instructions.
27.1	Other requirements: ○ The following requirement shall be submitted with the bid during bid submission: ■ The service provider should have undergone similar projects of a similar nature: • “Similar nature” shall be contracts pertaining to the supply, installation, configuration, commissioning, management, maintenance, and support of nationwide coverage of Low Earth Orbit Satellite internet system. The Bidder must have completed, within five (5) years prior to the deadline for the submission and receipt of bids, a Single Largest

	Completed Contract that is similar to the contract to be bid, and whose value, adjusted to current prices using the Philippine Statistics Authority (PSA) consumer price indices, must be at least fifty percent (50%) of the ABC. ○ The following requirements shall be submitted during the post-qualification period: ■ Value Added Service License – The Service Provider must be registered with the National Telecommunications Commission (NTC) as a Value Added Service Provider as defined by NTC Memorandum Circular 02-05-2008. The Certificate of Registration must be valid for the duration of the contract. ● In lieu of this, the service provider may submit at least one of the following: ○ Certificate of Public Convenience and Necessity - The Service provider to submit a certification from NTC that certifies the Service Provider is authorized to operate and maintain a nationwide wired and wireless broadband network in the Philippines and to offer broadband communications services and other ancillary services. ○ Tier 1 Internet Service Provider (ISP) Certification - The Service Provider is to submit a certification from the NTC stating they are authorized to establish, install, operate, and maintain a nationwide wired and wireless broadband network in the Philippines and offer national and international broadband communication services. ■ Furthermore, in the case of a joint venture, at least one entity must be registered as a value-added service provider and an internet service provider. ■ The Service Provider must have ISO 27001 - Information Security, Cybersecurity, and Privacy Protection certification. ● For joint ventures or partnerships, at least the primary Internet Service Provider or principal technology provider must possess the ISO 27001 certification. ■ The bidder must submit documentary evidence proving its status as an Authorized Reseller of LEO satellite systems, certified by the manufacturer. ■ The Service Provider must submit a list of key personnel who will be assigned to the project. This list must include:
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	(i) at least one (1) licensed Electronics Engineer; and (ii) technical staff, both with prior experience in implementing similar communication projects. Proof of qualifications and credentials shall be submitted, consisting of a valid Professional Regulation Commission (PRC) ID for licensed professionals and/or an official Certification of Employment/Engagement from the employer for technical staff, attesting to their relevant experience.
30.3(f)	No additional requirements.
31.2	Not applicable
31.3	The Performance Security shall be in the form: The amount of not less than 5% of the contract price, if performance security is in cash; • The amount of not less than 5% of the contract price, if performance security is in cashier's check; • The amount of not less than 5% of the contract price, if performance security is in manager's check;

Section IV.

General Conditions of Contract

1) General Terms

In this Contract, the following terms shall be interpreted as indicated:

- a) “The Procuring Entity” means the organization purchasing the Goods, as named in the SCC.
- b) “The Supplier” means the individual contractor, manufacturer distributor, or firm supplying/manufacturing the Goods and Services under this Contract and named in the SCC.
- c) The “Funding Source” means the organization named in the SCC.
- d) “The Project Site” where applicable, means the place or places named in the SCC.

2) Corrupt, Fraudulent, Collusive, and Coercive Practices

Unless otherwise provided in the SCC, the Procuring Entity as well as the Bidders, Contractors, or Suppliers shall observe the highest standard of ethics during the procurement and execution of this Contract. Further the Funding Source, as appropriate, will seek to impose the maximum civil, administrative, and/or criminal penalties available under the applicable law on individuals and organizations deemed to be involved with any of the practices mentioned in ITB Clause 3.1(a).

3) Inspection and Audit by the Funding Source

The Supplier shall allow the Funding Source to inspect its accounts and records related to the performance of its obligations. If the Funding Source requires a separate audit, it shall appoint its auditor and bear the cost thereof.

4) Governing Law and Language

- 4.1 This Contract shall be interpreted in accordance with the laws of the Republic of the Philippines.
- 4.2 This Contract has been executed in the English language, which shall be the binding and controlling language for all matters relating to the meaning or interpretation of this Contract. All correspondence and other documents pertaining to this Contract exchanged by the parties shall be written in English.

5) Notices

- 5.1 Any notice, request, or consent required or permitted to be given or made pursuant to this Contract shall be in writing. Any such notice, request, or consent shall be deemed to have been given or made when received by the concerned party, either in person or through an authorized representative of the Party to whom the communication is addressed, or when sent by registered mail

or electronic mail, to such Party at the address specified in the SCC, which shall be effective when delivered and duly received, as may be applicable.

- 5.2 A Party may change its address upon notice pursuant to the provisions listed in the SCC.

6) Scope of Contract

- 6.1 The Goods to be provided shall be as specified in Section VI. Schedule of Requirements.
- 6.2 This Contract shall include all such items, although not specifically mentioned, that can be reasonably inferred as being required for its completion as if such items were expressly mentioned herein. Any additional requirements for the completion of this Contract shall be provided in the SCC.

7) Subcontracting

- 7.1 For subcontracting arrangements, the following rules shall apply for both locally-funded projects and projects financed through Official Development Assistance, except those covered by treaty, or international, or executive agreements.

- a) The subcontracted portion of the contract shall be subject to the approval of the HoPE and the following conditions:
 - i) The subcontracted portion shall not exceed twenty percent (20%) for Goods, or a different percentage on a per project basis, as approved by the GPPB. The threshold percentages fixed herein shall be subject to the periodic review and adjustments as may be deemed appropriate by the GPPB; and
 - ii) The subcontracted portion shall be limited to components that are not deemed "significant or material" to the Project, as determined by the Procuring Entity.
- b) Subcontracting arrangement, if allowed, including the time of submission of the eligibility documents of the subcontractor, shall be disclosed in the Bidding Documents;
- c) Subcontractors must meet the eligibility criteria and submit the same eligibility documents as the general contractor.

Failure of a subcontractor to meet the eligibility criteria does not affect the eligibility of the general contractor for the procurement project. In such case, the portion intended to be subcontracted to the ineligible subcontractor shall be assumed by the general contractor;

- d) The general contractor shall remain liable for the subcontractor's actions, defaults, delays, and negligence;
- e) The general contractor and the subcontractor are obliged to comply with the provisions of the contract and shall share liability, jointly and severally, in cases of violation of safety standards or other labor standards insofar as the subcontracted portion is concerned; and
- f) For purposes of post-qualification in accordance with its objective and process under the IRR, the value of the entire completed and accepted Project, including the subcontracted portion, shall be credited as experience of the general contractor. In the case of the subcontractor, the following rules shall apply:
 - i) The subcontractor shall get credit for one hundred percent (100%) of the value of the subcontracted portion of the project performed; and
 - ii) Subcontractors shall be eligible to concessional windows of GFIs that treat receivables from the government as loan security; the receivables of subcontractors due from their general contractor shall similarly be accepted as loan security by GFIs.

8) Procuring Entity's Responsibilities

- 8.1 Whenever the performance of the obligations in this Contract requires that the Supplier obtain permits, approvals, import, and other licenses from local public authorities, the Procuring Entity may assist the Supplier in complying with such requirements in a timely and expeditious manner.
- 8.2 The Procuring Entity shall pay all costs involved in the performance of its responsibilities in accordance with the Scope of Contract.

9) Prices

- 9.1 For goods and services covered under this Contract, as awarded, all bid prices shall be deemed fixed and not subject to price escalation during contract implementation, except as otherwise provided in the succeeding provisions.
- 9.2 Prices charged by the Supplier for Goods delivered and/or services performed under this Contract shall not vary from the prices quoted by the Supplier in its bid, unless there is a change in price resulting from Amendment to Order issued in accordance with **GCC Clause 28**.

10) Advance Payment

- 10.1 For Goods sourced from within the Philippines, advance payments may be made as follows:

- a) A single advance payment not to exceed fifty percent (50%) of the contract amount shall be allowed for contracts entered into by a Procuring Entity for the following services where the requirement of down payment is a standard industry practice: 1) hotel and restaurant services; 2) use of conference/seminar and exhibit areas; and 3) lease of office space;
- b) Advance payment not to exceed fifteen percent (15%) of the contract amount, unless otherwise directed by the President, shall also be allowed for procurement of goods required to address contingencies arising from natural or man-made calamities in areas where a “State of Calamity” has been declared by appropriate authorities; and
- c) Upon submission of an irrevocable Letter of Credit (LoC) or bank guarantee issued by local bank, advance payment not exceeding fifteen percent (15%) of the contract amount shall be allowed and paid to the Supplier within sixty (60) calendar days from the signing of the contract. The irrevocable LoC or bank guarantee, which must be for an equivalent amount, shall remain valid until the goods are delivered, and accompanied by a claim for advance payment.

10.2 For Goods supplied from abroad, unless otherwise indicated in the SCC, the terms of payment shall be as follows:

- a) Upon Contract Signing: Fifteen Percent (15%) of the Contract Price shall be paid within sixty (60) days from signing of the Contract and upon submission of a claim and a bank guarantee for the equivalent amount valid until the Goods are delivered and in the form provided in Section VIII. PBD Related Forms.
- b) Upon Delivery: Sixty-five percent (65%) of the Contract Price shall be paid to the Supplier within sixty (60) days after the date of receipt of the Goods and upon submission of the documents (i) through (vi) specified in the SCC provision on Delivery and Documents.
- c) Upon Acceptance: The remaining twenty percent (20%) of the Contract Price shall be paid to the Supplier within sixty (60) days after the date of submission of the acceptance and inspection certificate for the respective delivery issued by the Procuring Entity’s authorized representative. In the event that no inspection or acceptance certificate is issued by the Procuring Entity’s authorized representative within forty-five (45) days of the date shown on the delivery receipt, the Supplier shall have the right to claim payment of the remaining twenty percent (20%) subject to the Procuring Entity’s own verification of the reason(s) for the failure to issue documents (vii) and (viii) as described in the SCC provision on Delivery and Documents.

- 10.3 All progress payments for Goods shall first be charged against the advance payment until the latter has been fully exhausted.

11) Payment

- 11.1 Payments shall be made only upon a certification by the HoPE that the Goods have been delivered in accordance with the terms of this Contract and have been duly inspected and accepted. Except with the prior approval of the President, no payment shall be made for services not yet rendered or for supplies and materials not yet delivered under the Contract.
- 11.2 The Supplier's request(s) for payment shall be made to the Procuring Entity in writing, accompanied by an invoice describing, as appropriate, the Goods delivered and/or Services rendered, and by documents submitted pursuant to the SCC provision for **GCC** Clause 6.2, and upon fulfillment of other obligations stipulated in this Contract;
- 11.3 Pursuant to **GCC** Clause 11.2, payments shall be made promptly by the Procuring Entity after submission of an invoice or claim by the Supplier. Payments shall be in accordance with the applicable accounting and auditing laws, rules and regulations.
- 11.4 Unless otherwise provided in the **SCC**, all payments to the Supplier under this Contract shall be in Philippine Peso;
- 11.5 Unless otherwise provided in the **SCC**, payments using LoC are allowed. For this purpose, the amount of provisional sum shall be indicated in the **SCC**. All charges for the opening of the LoC and/or incidental expenses thereto shall be for the account of the Supplier.

12) Taxes and Duties

The Supplier, whether local or foreign, shall be entirely responsible for all the necessary taxes, stamp duties, license and permit fees, and other such levies imposed for the completion of this Contract.

13) Performance Security

- 13.1 Within ten (10) calendar days from receipt of the Notice of Award from the Procuring Entity, but in no case later than the signing of the contract by both parties, the successful Bidder shall furnish the performance security in any the forms prescribed in the ITB Clauses 31.2 and 31.3.
- 13.2 The performance security posted in favor of the Procuring Entity shall be forfeited in the event it is established that the winning Bidder is in default in any of its obligations under the contract.

- 13.3 The performance security shall remain valid until issuance by the Procuring Entity of the Certificate of Final Acceptance.
- 13.4 The performance security may be released by the Procuring Entity and returned to the Supplier after the issuance of the Certificate of Final Acceptance, subject to the following conditions:
- a) There are no pending claims against the Supplier or the Surety Company filed by the Procuring Entity;
 - b) The Supplier has no pending claims for labor and materials filed against it; and
 - c) Other terms specified in the SCC.
- 13.5 The Procuring Entity shall allow a proportional reduction in the original performance security in case of a reduction in contract value, provided that any such reduction is more than ten percent (10%) and that the aggregate of such reductions is not more than fifty percent (50%) of the original performance security.

14) Use of Contract Documents and Information

- 14.1 The Supplier shall not, without the Procuring Entity's prior written consent, disclose this Contract or any specification, plan, drawing, pattern, sample, or information furnished by or on behalf of the Procuring Entity, except for purposes of performing the obligations therein. Any such disclosure shall be made in confidence and shall extend only as far as may be necessary for purposes of such performance.
- 14.2 Other than this Contract, any document enumerated in **GCC** Clause 14.1 shall remain the property of the Procuring Entity. All copies shall be returned to the Procuring Entity upon completion of the Supplier's performance under this Contract, if so required by the Procuring Entity.

15) Standards

The Goods provided under this Contract shall conform to the standards mentioned in the Section VII. Technical Specifications. When no applicable standard is mentioned, the Goods shall comply with the latest authoritative standards appropriate to its country of origin.

16) Inspection and Tests

- 16.1 The Procuring Entity or its representative shall have the right to inspect and/or to test the Goods to confirm their conformity to the Contract specifications at no extra cost to the Procuring Entity, other than that specified under Item 16.3 below. The SCC and Section VII. Technical Specifications shall specify what

inspections and/or tests the Procuring Entity requires and where they are to be conducted. The Procuring Entity shall notify the Supplier in writing, in a timely manner, of the identity of any representatives retained for these purposes.

- 16.2 If applicable, the inspections and tests may be conducted on the premises of the Supplier or its subcontractor(s), at point of delivery, and/or at the goods' final destination. If conducted on the premises of the Supplier or its subcontractor(s), all reasonable facilities and assistance, including access to drawings and production data, shall be furnished to the inspectors at no cost to the Procuring Entity. The Supplier shall provide the Procuring Entity with the results of such inspections and tests.
- 16.3 The Procuring Entity or its designated representative shall be allowed to attend the tests and/or inspections referred to in this Clause provided that the Procuring Entity shall bear all of its own costs and expenses incurred in connection with such attendance including, but not limited to, all traveling and board and lodging expenses.
- 16.4 The Procuring Entity shall reject the Goods or any part thereof that fail any test and/or inspection or do not conform to the specifications. The Supplier shall either rectify or replace such rejected Goods or parts thereof or make alterations necessary to meet the specifications at no cost to the Procuring Entity. Upon giving due notice to the Supplier pursuant to **GCC** Clause 5, the test and/or inspection may be repeated by the Procuring Entity, at no additional cost.
- 16.5 The Supplier agrees that neither the execution of a test and/or inspection of the Goods or any part thereof, nor the attendance by the Procuring Entity or its representative to the said test and/or inspection, shall release the Supplier from any warranties or other obligations under this Contract.

17) Warranty

- 17.1 The Supplier warrants that the Goods supplied under the Contract are new, unused, of the most recent or current models, and with all recent improvements in design and materials, except when the technical specifications required by the Procuring Entity provides otherwise.
- 17.2 The Supplier further warrants that all Goods supplied under this Contract shall have no defect, arising from design, materials, or workmanship or from any act or omission of the Supplier that may develop under normal use of the supplied Goods in the conditions prevailing in the country of final destination.
- 17.3 To ensure correction of manufacturing defects, the Supplier shall be required to provide a warranty for a minimum period specified in the **SCC**. At the option of the Procuring Entity, the obligation for the warranty shall be covered by:

- a) Retention money in an amount equivalent to at least one percent (1%) but not to exceed five (5%) of every progress payment; or
 - b) Special bank guarantee equivalent to at least one percent (1%) but not to exceed five (5%) of the total Contract Price; or
 - c) Other such amounts, if so specified in the **SCC**.
- 17.4 The said amounts shall only be released by the Procuring Entity after the lapse of the warranty period as specified in the **SCC**, or in case of Expendable Supplies, after the consumption thereof; Provided, however, that the Supplies delivered are free from patent and latent defects and all the conditions imposed under this Contract have been fully met.
- 17.5 The Procuring Entity shall promptly notify the Supplier in writing of any claims arising under the warranty. Upon receipt of such notice, the Supplier shall, within the period specified in the **SCC**, repair or replace the defective Goods or parts thereof, at the soonest possible time, without cost to the Procuring Entity.
- 17.6 If the Supplier, after having been notified on the warranty claim, fails to remedy the defect(s) within the period specified in **GCC** Clause 17.5, the Procuring Entity may proceed to take such remedial action as may be necessary, at the Supplier's risk and expense, and without prejudice to any other rights which the Procuring Entity may have against the Supplier under the Contract and other applicable laws.

18) Delays in the Supplier's Performance

- 18.1 Delivery of the Goods and/or performance of Services shall be made by the Supplier in accordance with the time schedule prescribed by the Procuring Entity in Section VI. Schedule of Requirements.
- 18.2 If at any time during the performance of this Contract, the Supplier encounters conditions that may impede the timely delivery of the Goods and/or performance of Services, the Supplier shall promptly notify the Procuring Entity in writing of the fact of the delay, its likely duration and its cause(s). As soon as practicable after receipt of the Supplier's notice, and upon causes provided for under **GCC** Clause 23, the Procuring Entity shall evaluate the situation and, if warranted, extend the Supplier's time for performance, in which case the extension shall be ratified by the parties by amendment of Contract.
- 18.3 Except as provided under **GCC** Clause 23, any delay by the Supplier in the performance of its obligations shall render it liable to the imposition of liquidated damages pursuant to **GCC** Clause 19, unless an extension of time is agreed upon pursuant to **GCC** Clause 28.

19) Liquidated Damages

- 19.1 When the Supplier fails to satisfactorily deliver the Goods under the contract within the specified delivery schedule, inclusive of duly granted time extensions, if any, the Supplier, manufacturer, or distributor shall be liable for liquidated damages in an amount equal to one-tenth (1/10) of one percent (1%) of the cost of the delayed goods scheduled for delivery for every day of delay until such goods are finally delivered and accepted by the Procuring Entity.
- 19.2 The Procuring Entity need not prove that it has incurred actual damages to be entitled to liquidated damages. Such amount shall be deducted from any money due, or which may become due the supplier, manufacturer, or distributor, or collected from any securities or warranties posted by the supplier, manufacturer, or distributor, whichever is convenient to the Procuring Entity. In case the total sum of liquidated damages reaches ten percent (10%) of the total contract price, the Procuring Entity may rescind the contract and impose appropriate sanctions over and above the liquidated damages to be paid.
- 19.3 If delays are likely to be incurred beyond its control, the supplier, manufacturer, or distributor shall promptly notify the Procuring Entity in writing, providing details of the causes and duration of the expected delay. The Procuring Entity may, at its discretion, grant a time extension based on meritorious grounds, with or without the imposition of liquidated damages.

20) Settlement of Disputes

- 20.1 Any dispute arising from the implementation of a contract covered by the Act and the IRR shall primarily be resolved and settled amicably by mutual consultation or agreement.
- 20.2 In case of failure to settle dispute amicably, the parties may mutually agree in writing to resort to other modes of alternative dispute resolution (ADR) to promote efficiency in the procurement process. Accordingly, they are encouraged to select the most expeditious mode of ADR available.

If arbitration is chosen as the ADR method, this shall be incorporated as a provision in the contract and referred to the Arbitrator specified in the **SCC**.

- 20.3 In case of disagreement or after exhausting the remedies provided in the preceding Section, the dispute may be submitted to arbitration or other forms of ADR which includes mediation, conciliation, early neutral evaluation, mini-trial, or any combination thereof in accordance with the provisions of RA No. 9285, otherwise known as the "Alternative Dispute Resolution Act of 2004."
- 20.4 Should the Parties fail to resolve their dispute or difference by such mutual consultation or agreement after thirty (30) days, either the Procuring Entity or the Supplier may signify its intention to commence arbitration by giving notice

to the other Party, as hereinafter provided, as to the matter in dispute, and no arbitration in respect of this matter may be commenced unless such notice is given.

20.5 Any dispute or difference in respect of which a notice of intention to commence arbitration has been given in accordance with this Clause shall be settled by arbitration. Arbitration may be commenced prior to or after delivery of the Goods under this Contract.

20.6 Notwithstanding any reference to arbitration herein, the Parties shall continue to perform their respective obligations under the Contract unless otherwise agreed upon in writing.

21) Liability of the Supplier

21.1 The Supplier's liability under this Contract shall be as provided by the laws of the Republic of the Philippines, subject to additional provisions, if any, set forth in the SCC.

21.2 Except in cases of criminal negligence or willful misconduct, and in the case of infringement of patent rights, if applicable, the aggregate liability of the Supplier to the Procuring Entity shall not exceed the total Contract Price, provided that this limitation shall not apply to the cost of repair or replacement of the defective Goods.

22) Termination for Breach of Contract

The Procuring Entity may terminate for breach of contract when the Supplier fails to deliver or perform any or all of the Goods within the period(s) specified in the contract, or within any extension thereof granted by the Procuring Entity, pursuant to a request made by the Supplier prior to the delay, and such failure amounts to at least ten percent (10%) of the contract price, consistent with the provision of this IRR on liquidated damages. The Procuring Entity may likewise impose appropriate sanctions therein.

23) Termination Due to Force Majeure

23.1 For purposes of this Contract, the terms "*force majeure*" and "fortuitous event" may be used interchangeably. In this regard, a fortuitous event or *force majeure* shall be interpreted to mean as an event which the Supplier could not have been foreseen, or though foreseen, was inevitable. It shall not include ordinary unfavorable weather conditions, and any other causes the effect/s of which could have been avoided with the exercise of reasonable diligence by the Supplier. Such events may include, but not limited to, acts of the Procuring Entity in its sovereign capacity, wars or revolutions, fires, floods, epidemics, quarantine restrictions, and freight embargoes.

- 23.2 The Procuring Entity may terminate this Contract and impose liquidated damages when, as a result of *force majeure*, the Supplier is unable to deliver or perform any or all of the Goods, amounting to at least ten percent (10%) of the Contract Price, for a period of not less than sixty (60) calendar days, or earlier, as deemed necessary by the Procuring Entity, after receipt of the written notice from the Procuring Entity stating that the circumstance of *force majeure* is deemed to have ceased.
- 23.3 The Supplier shall not be subject to forfeiture of its performance security, payment of liquidated damages, or contract termination due to *force majeure*, provided that the Supplier's delay in performance or other failure to perform its obligations under this Contract is the result of a *force majeure*.
- 23.4 If a *force majeure* situation arises, the Supplier shall promptly notify the Procuring Entity in writing of such condition and the cause thereof. Unless otherwise directed by the Procuring Entity, the Supplier shall continue to perform its obligations under the Contract as far as may be practicable, when not prevented by the *force majeure*, and shall seek all reasonable alternative means in the performance of its obligation.

24) Termination for Convenience

- 24.1 The Procuring Entity, through a written notice sent to the Supplier, may terminate this Contract, in whole or in part, at any time, if it has determined the existence of any of the following conditions that make contract implementation economically, financially, or technically impractical or unnecessary:
- a) When physical and economic conditions have significantly changed so as to render the project no longer economically, financially, or technically feasible, as determined by the HoPE;
 - b) When the HoPE has determined the existence of conditions that make project implementation impractical or unnecessary, such as, but not limited to, fortuitous event/s, changes in laws, and government policies;
 - c) When funding for the Project has been withheld or reduced by higher authorities through no fault of the Procuring Entity; or
 - d) Any circumstance analogous to the foregoing.
- 24.2 The Goods that have been performed or are ready to be delivered or performed within thirty (30) calendar days after the Supplier's receipt of Notice to Terminate shall be accepted by the Procuring Entity at the contract terms and prices thereof. For Goods not yet delivered, performed and/or ready to be delivered or performed, the Procuring Entity may elect:

- a) To have any portion delivered and/or performed and paid at the contract terms and prices thereof; or
- b) To cancel the remainder and pay to the Supplier an agreed amount for partially completed and/or performed goods and for materials and parts previously procured by the Supplier.

25) Termination for Unlawful Acts

25.1 The Procuring Entity may terminate this Contract in case it is determined *prima facie* that the Supplier, including any joint venture partner therein, has engaged, before or during the implementation of this Contract, in unlawful deeds and behaviors relative to contract acquisition and implementation. Unlawful acts include, but are not limited to, the following:

- a) Corrupt, fraudulent, collusive, and coercive practices as defined in ITB Clause 3.1;
- b) Drawing up or using forged documents;
- c) Using adulterated materials, means or methods, or engaging in production contrary to rules of science or the trade; and
- d) Any other act analogous to the foregoing.

26) Procedures for Termination of Contracts

26.1 The following provisions shall govern the procedures for termination of this Contract:

- a) **Verification** - Upon receipt of a written report of acts or causes which may constitute grounds for termination as aforementioned, or upon its own initiative, the End-User or Implementing Unit shall, within a period of seven (7) calendar days, verify the existence of such grounds and cause the execution of a Verified Report, with all relevant evidence attached.
- b) **Notice to Terminate** - Upon recommendation by the End-User or Implementing Unit, the HoPE shall terminate contracts only by written notice to the supplier conveying the termination of the contract. The notice shall state:
 - i) That the contract is being terminated for any of the grounds aforementioned, and a statement of the acts that constitute the grounds constituting the same;
 - ii) The extent of termination, whether in whole or in part;

- iii) An instruction to the Supplier, to show cause as to why the contract should not be terminated; and
- iv) Special instructions of the Procuring Entity, if any.

The Notice to Terminate shall be accompanied by a copy of the Verified Report.

- c) **Show Cause** - Within a period of seven (7) calendar days from receipt of the Notice of Termination, the Supplier shall submit to the HoPE a verified position paper stating why the contract should not be terminated. If the Supplier fails to show cause after the lapse of the seven (7) day period, either by inaction or by default, the HoPE shall issue an order terminating the contract.
- d) **Rescission of Notice of Termination** - The Procuring Entity may, at any time before receipt of the Supplier's verified position paper, withdraw the Notice to Terminate if it is determined that certain items or works subject of the notice had been completed, delivered, or performed before the Supplier's receipt of the notice.
- e) **Decision** - Within a non-extendible period of ten (10) calendar days from receipt of the verified position paper, the HoPE shall decide whether or not to terminate the contract. It shall serve a written notice to the Supplier of its decision and, unless otherwise provided, the contract is deemed terminated from receipt of the Supplier of the notice of the decision. The termination shall only be based on the grounds stated in the Notice to Terminate.
- f) **Contract Termination Review Committee (CTRC)** - The HoPE may create a committee to assist in the discharge of its functions under the IRR. All decisions recommended by the CTRC shall be subject to the approval of the HoPE.
- g) **Take-over of Contracts** - If a Procuring Entity terminates the contract due to default, insolvency, or for a cause, it may enter into a Negotiated Procurement (Take-over of Contracts) pursuant to Section 35(c) of RA No. 12009.
- h) **Procuring Entity's Options in Termination for Convenience in Contracts for Goods** - The Goods that have been performed or are ready for delivery within thirty (30) calendar days after the supplier's receipt of Notice to Terminate shall be accepted by the Procuring Entity at the contract terms and prices. For Goods not yet performed or ready for delivery, the Procuring Entity may elect:

- i) To have any portion delivered or performed and paid at the contract terms and prices; or
- ii) To cancel the remainder and pay to the supplier an agreed amount for partially completed or performed goods and for materials and parts previously procured by the supplier.

27) Assignment of Rights

The Supplier shall not assign its rights or obligations under this Contract, in whole or in part, except upon prior written consent of the Procuring Entity.

28) Amendment to Order

No variation in or modification of the terms of this Contract shall be made except by written amendment signed by the parties in accordance with the provisions on Amendment to Order, subject to applicable laws, rules and regulations.

29) Application

These General Conditions shall apply to the extent that they are not suspended by the provisions from other parts of this Contract.

Section V. Special Conditions of Contract

Special Conditions of Contract

GCC Clause	
1(a)	The Procuring Entity is the Department of Information and Communications Technology Region 13
1(b)	Not applicable
1(c)	The Funding Source is: The GoP through the source of funding as indicated below for Continuing Fund FY 2025 Special Account in the General Fund - Free Public Internet Access Program in payment for the project is THREE MILLION NINE HUNDRED FORTY-FIVE THOUSAND EIGHT HUNDRED EIGHTY-ONE PESOS ONLY (PHP 3,945,881.00).
1(d)	The Project Site is Department of Information and Communications Technology Region 13, J. Rosales Avenue, Butuan City
2	No further instructions.
5.1	The Procuring Entity's address is: Department of Information and Communications Technology - Region 13 DICT Building, J. Rosales Avenue, Butuan City BAC.caraga@dict.gov.ph (085) 817-2011
5.2	No further instructions.
6.2	Delivery and Documents For purposes of this Contract, "EXW," "FOB," "FCA," "CIF," "CIP," "DDP" and other trade terms used to describe the obligations of the parties shall have the meanings assigned to them by the current edition of INCOTERMS published by the International Chamber of Commerce, Paris. The Delivery terms of this Contract shall be as follows: <i>For Goods Supplied from Abroad, state "The delivery terms applicable to the Contract are DDP delivered to DICT Bldg., J. Rosales Avenue, Butuan City. In accordance with INCOTERMS." (DAP)</i> <i>For Goods Supplied from Within the Philippines, state "The delivery terms applicable to this Contract are delivered to DICT Bldg., J. Rosales Avenue, Butuan City. Risk and title will pass from the Supplier to the Procuring Entity upon receipt and final acceptance of the Goods at their final destination."</i>

	Delivery of the Goods shall be made by the Supplier in accordance with the terms specified in Section VI. Schedule of Requirements. The details of shipping and/or other documents to be furnished by the Supplier are as follows: <i>For Goods supplied from within the Philippines:</i> Upon delivery of the Goods to the Project Site, the Supplier shall notify the Procuring Entity and present the following original documents to the Procuring Entity: i) Supplier's invoice showing the goods' description, quantity, unit price, and total amount; ii) Delivery receipt/note, railway receipt, or truck receipt; iii) Supplier's factory inspection report; iv) Manufacturer's and/or Supplier's warranty certificate; v) Certificate of origin (for imported Goods); vi) Delivery receipt detailing number and description of items received signed by the authorized receiving personnel; vii) Certificate of Acceptance/Inspection Report signed by the Procuring Entity's representative at the Project Site; and viii) Four copies of the Invoice Receipt for Property signed by the Procuring Entity's representative at the Project Site. Incidental Services The Supplier is required to provide all of the following services, including additional services, if any, specified in Section VI. Schedule of Requirements: a) performance or supervision of onsite assembly and/or startup of the supplied goods; b) furnishing of tools required for assembly and/or maintenance of the supplied goods; c) furnishing of a detailed operations and maintenance manual for each appropriate unit of the supplied goods; d) performance or supervision or maintenance and/or repair of the supplied goods, for a period of time agreed by the parties, provided that this service shall not relieve the Supplier of any warranty obligations under this Contract; and
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	e) training of the Procuring Entity's personnel, at the Supplier's plant and/or on-site, in assembly, start-up, operation, maintenance, and/or repair of the supplied goods. The Contract price for the goods shall include the prices charged by the Supplier for incidental services and shall not exceed the prevailing rates charged to other parties by the Supplier for similar services. Insurance The Supplier shall fully insure the goods supplied under this Contract in a currency, local or tradeable and accepted by the <i>Bangko Sentral ng Pilipinas</i> against loss or damage incidental to manufacture, acquisition, transportation, storage, and delivery. The risk and ownership of the goods remain with the Supplier until their final acceptance by the Procuring Entity, unless otherwise specified in this Contract. Transportation The Supplier shall arrange and pay for the delivery of the goods, with the cost included in the Contract Price. When required under this Contract to deliver the goods CIF, CIP, or DDP, the Supplier shall ensure the transport of the goods to the port of destination or any other specified place of destination in the Philippines, as indicated in this Contract. The Supplier shall arrange for transport, insurance, and storage to the specified destination with the related costs included in the Contract Price. When required under this Contract to transport the goods to a specified place of destination within the Philippines, defined as the Project Site. The goods must be transported using carriers registered in the Philippines when the Supplier is required under this Contract to deliver the goods CIF (Cost, Insurance, and Freight), CIP (Carriage and Insurance Paid To), or DDP (Delivered Duty Paid). If no Philippine-registered carrier is available, the goods may be shipped using a non-Philippine carrier, provided the Supplier obtains and presents certification from the nearest Philippine consulate at the port of dispatch. If Philippine-registered carriers are available but their schedules would impede timely delivery or cause delays in the Supplier's performance of this Contract, the period of delay from when the goods were first ready for shipment to the actual date of
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	shipment will be considered <i>force majeure</i> in accordance with GCC Clause 23. The Procuring Entity accepts no liability for the damage of goods during transit other than those prescribed by INCOTERMS for DDP Deliveries. In the case of goods supplied from within the Philippines or supplied by domestic Suppliers, risk and ownership will not be deemed transferred to the Procuring Entity until their receipt and final acceptance at the final destination. Patent Rights The Supplier shall indemnify the Procuring Entity against all third-party claims of infringement of patent, trademark, or industrial design rights arising from use of the goods or any part thereof.
10.3	Payment scheme for the subscription shall be based on a government fiscal calendar - Quarterly: • 3rd Quarter: July - September 2026 • 4th Quarter: October - December 2026 <i>Note:</i> 1. The service coverage will officially commence the day after the successful activation and acceptance of the total contracted locations. 2. This schedule of billing is indicative and may be subject to change depending on the actual date of issuance of the PO. 3. Should the acceptance date fall in the middle of the month, a prorated computation shall be implemented. 4. Payment for the last quarter shall be put on hold unless all applicable service extensions are delivered and fulfilled. 5. Release of quarterly payments shall be subject to the submission of complete and duly validated billing documents listed under the Documents Required for Payment.
11.4	Payment shall be made in Philippine Peso.
11.5	Not Applicable
13.4(c)	No further instructions
16.1	The inspections and tests that will be conducted are: • DICT reserves the right to test the service and accept or reject any or all the delivered equipment and/or service not in accordance with the technical specifications. • The Service Provider shall conduct testing and acceptance activity: ○ This shall be preferably in accordance with the content of the Acceptance Documents provided by the DICT, unless otherwise requested. ○ The User and Acceptance Test (UAT) shall be

	conducted by the authorized representatives from both parties (the DICT and the vendor). ○ The Service Provider shall accommodate at least one (1) representatives from the DICT for the duration of the testing and acceptance activities, including but not limited to transportation, meals, and accommodation, as necessary. All expenses related to the testing and acceptance activities shall be fully borne by the Service Provider and the DICT shall not be billed separately for the DICT representative and the Service Provider's travel, equipment deployment, or site visit expenses. ○ Test results, such as, but not limited to, iPerf, speed tests, or any similar bandwidth measurement tool, shall be used as proof that the supplied bandwidth is compliant with the required deliverable and is an acceptable requirement for acceptance. ● Testing and acceptance shall be done per the identified location: ○ Per location acceptance shall only be used for monitoring and documentation and shall not constitute full completion of the project. ○ The Service Provider shall submit, together with the Service Acceptance Report, the raw (unedited) video recording that shows the following in sequence (if applicable): ■ Facade of the building that shows the identity of the building/location. ■ Walkthrough video of all the installed devices/equipment in the location. ■ Video recording showing GPS location (Screen recording is not allowed). ■ Video recording of the testing of internet service (e.g., Speedtest using Ookla, iPerf, or an equivalent network performance testing application) (Screen recording is not allowed). ○ All video recordings and acceptance materials shall be submitted to the Procuring Entity through the designated web application and uploaded to a cloud-based/shared storage provided by the Service Provider. These shall be accompanied by the digitally signed User Acceptance Test (UAT) Forms and complete UAT attachment set. ○ The Service Provider shall provide, maintain, and ensure uninterrupted accessibility of the cloud-based/shared storage repository where all video recordings and acceptance documents shall be
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	uploaded, stored, and made accessible throughout the duration of the contract. ○ All files shall be organized systematically, with separate folders per province, and location to ensure proper documentation, traceability, and ease of validation. ○ After the acceptance of all lots, all files shall be consolidated and retained in the cloud-based/shared storage. ○ The Service Provider shall be required to submit complete documentation of all installed LEO Satellites and APs and corresponding signage. ■ Installation Site Plan: A clear, scaled floor plan or vicinity plan for each service location, which accurately indicates the following: ● The exact physical locations of all installed LEO Satellites and APs. ● The corresponding physical locations of the installed signage ● Photo Documentation File. High-resolution digital photographic evidence of each installed LEO Satellite and AP and its corresponding signage shall be submitted. Each photo must clearly show: ○ A close-up photograph of the installed LEO Satellites and AP, including any serial number or identifying tag; ○ The signage installed within the prescribed distance; ○ A wide-angle shot showing both AP and signage in context. ● The following modes of Acceptance may be undertaken: ○ On-site acceptance - End User's representative and the Service Provider's representative shall be on-site to conduct the acceptance. ○ Online acceptance / Remote Acceptance - End User's representative shall attend the acceptance online, hosted by the Service provider who is physically present onsite; or ○ Video Recorded Acceptance - The Service Provider shall conduct and record all testing procedures required for Acceptance. ● The Service Provider shall issue a summary of the DICT Acceptance Report, which contains the individual date of
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	acceptance for each location, serving as the Final Acceptance Report. The overall date of acceptance of the lot will be the final date of the lot that has been completed and accepted. • The Service Provider shall provide all the necessary documentation and/or specification sheets showing that the equipment provided and/or service is compliant with the specifications. • The Service Provider shall attach a laminated As-Built Plan for each communication box per location. This shall include the corresponding single-line network diagram covering all CPEs deployed at the site. All as-built plans, together with the required API credentials for DICT access and monitoring, shall be submitted to the Procuring Entity upon submission of the Acceptance Advisory Form (AAF). • Testing and acceptance shall be done per location, which include the following; ○ Internet Subscription Testing and Acceptance: ■ The acceptance of the internet subscription service shall be based on performance testing and service validation in accordance with the following criteria: • Power-on test of the satellite terminal with successful link acquisition to the LEO satellite network. • Connectivity test, internet speed, and latency measurements to confirm compliance with required service levels. • Confirmation of unlimited monthly data allocation and continuous connectivity without throttling or data restrictions. • Assessment of the centralized NMS dashboard for real-time monitoring of operational status, data usage, bandwidth allocation, and utilization. • Validation of access credentials provided to DICT for account and service monitoring, ensuring alignment with the Terms of Reference. ○ IPv6 Compliance Testing and Validation: ■ Verification of IPv6 configuration shall be performed from the LEO terminal up to the DICT CPEs. ■ The Service Provider shall demonstrate successful dual-stack (IPv4 and IPv6) operation and confirm end-to-end IPv6 reachability.
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	■ IPv6 traffic transmission and routing shall be validated using standard network testing tools (e.g., ping6, traceroute6, or equivalent). ■ The Service Provider shall include in the UAT Attachment Form screenshots evidencing successful IPv6 configuration and connectivity as proof of compliance with DICT requirements. ● Acceptance Procedure and Documentation: ○ The Service Provider shall submit an AAF at least three (3) calendar days prior to the scheduled acceptance activity (<i>Refer to Annex C</i>). Considering the multiple implementation sites, the Service Provider may submit the AAF on a partial basis, corresponding to completed and ready-for-acceptance locations. Submission of the AAF shall only be made once the site is fully operational, online, and with continuous and uninterrupted service. ○ Upon receipt of the AAF, the Procuring Entity shall conduct validation and shall provide an official response within three (3) working days. ○ In the event that submitted locations are found non-compliant or not operational, the Procuring Entity shall issue a Punch List indicating all identified site deficiencies. The Service Provider shall rectify all noted site deficiencies within seven (7) calendar days from receipt of the Punch List. ■ If the Service Provider fails to comply within seven (7) calendar days, LD shall not yet be imposed, provided that the allowable service delivery period has not yet lapsed. ■ Failure to complete the required rectification within the allowable service delivery period shall render the affected deliverables subject to LD, in accordance with the provisions of the TOR and applicable procurement rules and regulations. ○ Once a site has been submitted for acceptance and is confirmed operational, the service shall remain active and shall not be discontinued or turned off thereafter. The issuance of the Final Service Acceptance shall only be made after the completion and acceptance of all covered sites, and upon successful passing of the final acceptance activity of the last site.
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	○ The Service Provider shall prepare and submit a Service Acceptance Method of Procedure (MOP) for DICT's approval before conducting the acceptance. ○ The UAT form and acceptance activity shall be conducted by authorized representatives from both DICT and the Service Provider. <i>(Refer to Annex D)</i> ○ Upon successful testing, the Service Provider shall submit a Service Acceptance Report, subject to DICT's approval, certifying that the internet subscription service is fully operational and compliant. <i>(Refer to Annex E)</i> ○ The Service Provider shall furnish a Service Acceptance Report, to be approved by DICT, certifying that the service is already available and conforms in accordance with the specifications. ○ The Service Provider shall also submit a summary of all accepted locations, indicating the individual date of acceptance per site, which shall form part of the Final Acceptance Report. The overall acceptance date of the lot shall be the date of acceptance of the last completed site. ○ Final Service Acceptance shall only be issued upon completion and acceptance of all sites.
17.3	Warranty: ● The Service Provider warrants that all the network components supplied under the contract are new and unused, and that they incorporate all recent improvements in design and materials, except when the technical specifications required by the DICT provide otherwise. ● The Service Provider further warrants that all network components supplied under this contract shall have no defect, arising from design, materials, or workmanship or from any act or omission of the Service Provider that may develop under normal use of the supplied components in the conditions prevailing in the country of final destination. This warranty shall remain in effect for the entire duration of the Service Operation Period from the date of delivery and acceptance. ● In the event that any network component is found to be faulty under normal use within the warranty periods specified below, the Service Provider shall, at no additional cost to the DICT, provide a replacement unit within five (5) calendar days for critical components and within fifteen (15) calendar days for non-critical components. Critical components refer to equipment whose failure results in total service outage or inability to deliver

	internet connectivity at the site; Non-critical components refer to equipment whose failure results only in partial service degradation but does not render the entire site offline. In the event of a contract renewal or extension, the warranty period shall likewise be extended to cover the entire contract duration. • The Service Provider shall ensure that all provided APs and SD-WAN Branch Routers fully meet the required specifications and functionalities without the need for any additional equipment. No additional devices, accessories, or add-ons shall be allowed to achieve compliance with the specifications. • Duration of the service contract, the Service Provider is the sole owner of the equipment used, and as such, is responsible for its maintenance and protection. In any case that the equipment has been damaged or stolen, the service provider must replace their equipment at no additional cost to the procuring entity or to the project-identified beneficiaries. • At the end of the service contract period, the ownership of all deployed equipment in all identified lot locations — including the satellite equipment, its original kickstand, peripherals used for the service, subscription accounts, data cabinets, and all other CPEs — shall be turned over to DICT Region XIII after the completion of the service contract. • The Service Provider shall prepare and provide all the necessary and pertinent documents prior to the transfer of ownership of all the deployed equipment relative to this project, including but not limited to an inventory of all deployed equipment. • The Service Provider shall submit an inventory of all deployed CPEs, using the template provided in Annex F, together with the AAF to the Procuring Entity. • Upon contract completion, all NMS and associated super admin account(s) shall be turned over to the Procuring Entity at no additional cost. The cloud-managed monitoring system shall remain fully operational without requiring any subscription payments for the current or any succeeding years (lifetime), ensuring long-term sustainability.
17.3(c)	Not applicable
17.4	No further instructions
17.5	No further instructions
20.2	Not applicable
21.1	No further instructions

Section VI. Schedule of Requirements

The delivery schedule, expressed in weeks or months, indicates the required delivery date which shall be understood as the date the Goods are to be delivered to the project site.

Lot No.	Description	ABC	Delivered, Weeks/ Months
1-2	Provision of Internet Access via Low Earth Orbit Satellite (PIALEOS) for Government Support in Barangay Halls and Public Transport Terminals in Region XIII	₱3,945,881.00	The delivery of the service and installation, including testing and acceptance, to all locations, is thirty (30) calendar days upon receipt of the NTP The service coverage and operation shall last for six (6) months, or until December 31, 2026, whichever comes first, commencing after the service delivery and acceptance of all locations in the contracted lot Service coverage, meanwhile, shall include SLA and warranty for four (4) months Service coverage and warranty shall be until the end of the service coverage and operation provided that applicable service extensions, if any, shall be applied

Section VII. Technical Specifications

Technical Specifications

[Bidders must state here either “Comply” or “Not Comply” against each of the individual parameters of each Specification stating the corresponding performance parameter of the equipment offered. Statements of “Comply” or “Not Comply” must be supported by evidence in a Bidders Bid and cross-referenced to that evidence. Evidence shall be in the form of manufacturer’s un-amended sales literature, unconditional statements of specification and compliance issued by the manufacturer, samples, independent test data etc., as appropriate. A statement that is not supported by evidence or is subsequently found to be contradicted by the evidence presented will render the Bid under evaluation liable for rejection. A statement either in the Bidder’s statement of compliance or the supporting evidence that is found to be false either during Bid evaluation, post-qualification or the execution of the Contract may be regarded as fraudulent and render the Bidder or supplier liable for prosecution subject to the applicable laws and issuances.]

Item (TOR Section)	Specification	Statement of Compliance								
PROVISION OF INTERNET ACCESS VIA LOW EARTH ORBIT SATELLITE (PIALEOS) FOR GOVERNMENT SUPPORT IN BARANGAY HALLS AND PUBLIC TRANSPORT TERMINALS IN REGION XIII										
8	SCOPE OF WORK									
8.1	The Service Provider shall supply, deliver, install, test, and commission a highly secure enterprise-grade Internet access per identified location (Annex A: List of Locations), using Low Earth Orbit (LEO) satellite systems, with the following minimum characteristics, capacities, and/or capabilities:									
8.1.1	Internet Connection – Shall provide an internet connection per location with the following specifications:									
8.1.1.1	LEO Satellite Connectivity (per location)									
	<table><tr><th>Download Bandwidth</th><th>Upload Bandwidth</th><th>Data Allocation per Month</th><th>Round Trip Latency</th></tr><tr><td>100 - 220 Mbps per location</td><td>10 - 25 Mbps per location</td><td>Unlimited</td><td>Maximum of 60 hrs</td></tr></table>	Download Bandwidth	Upload Bandwidth	Data Allocation per Month	Round Trip Latency	100 - 220 Mbps per location	10 - 25 Mbps per location	Unlimited	Maximum of 60 hrs	
	Download Bandwidth	Upload Bandwidth	Data Allocation per Month	Round Trip Latency						
100 - 220 Mbps per location	10 - 25 Mbps per location	Unlimited	Maximum of 60 hrs							
8.1.1.2	Must support IPv4 and IPv6 connectivity with globally routable addresses to ensure interoperability and future-proofing.									
8.2	EQUIPMENT REQUIREMENTS									
8.2.1	The Service Provider shall design, supply, deliver, install, and commission a highly secure and highly resilient LEO satellite digital infrastructure that delivers internet access at each designated location. The solution must satisfy the minimum characteristics, capacities, and capabilities outlined under this section.									

8.2.2	The Service Provider shall provide all necessary CPE), including but not limited to hardware, terminations, cabling, and auxiliary services required to establish and maintain internet connectivity.	
8.2.3	The Service Provider shall provide, install, and commission the necessary equipment (or its equivalent integrated hardware/appliance) at each designated location for the duration of the service subscription, including but not limited to the following:	
8.2.3.1	One (1) LEO Satellite Terminal	
8.2.3.2	Two (2) Outdoor Access Point (Outdoor AP)	
8.2.3.3	One (1) Indoor Access Point (Indoor AP)	
8.2.3.4	One (1) SD-WAN Branch Router	
8.2.3.5	One (1) Data Communication Box	
8.2.4	The bidder shall submit the brochure/data sheet indicating technical specifications and features of the equipment during post-qualification.	
8.3	CAPTIVE PORTAL	
8.3.1	Shall provide one of the following:	
8.3.1.1	DICTs Captive Portal – Shall require the supplier to integrate and interoperate with the DICT's Core Network Service(s) via RADIUS.	
8.3.1.1.1	All APs should be integrated into the DICT's Captive portal via RADIUS.	
8.3.1.1.2	DICT must give the service provider the IP address of the RADIUS server. The service provider will also configure their respective systems accordingly.	
8.3.1.1.3	IP addressing/network design of the supplier must be approved by DICT prior to the implementation to avoid IP conflict/duplication with the existing DICT IP addressing/network.	
8.3.2	Service Providers Captive Portal - Shall require the supplier to provide a customizable captive portal service (such as Landing Page, Authentication, End-user License Agreement, Acceptable Use Policy).	
8.3.2.1	Captive Portal Service format, layout, and design must be approved by the DICT.	
8.3.2.2	Must have a landing page with response time no more than five (5) seconds under full load conditions.	
8.4	SIGNAGE	

8.4.1	The Service Provider shall be responsible for the fabrication, provision, installation, and maintenance of signage for each AP location covered under this project.	
8.4.2	The signage to be installed at each AP location shall meet the following minimum requirements:	
8.4.2.1	Material Fabrication: The Service Signage shall be fabricated using a durable, weatherproof, and non-fading material appropriate for outdoor exposure, such as high-grade Sintra board or any equivalent material approved by the DICT.	
8.4.2.2	Size Requirement: The print size shall be A0-size (841 mm x 1189 mm) project signage at each site's primary location, and an A1-size [594 mm x 841mm] signage at each secondary location or directly below each AP, both mounted 1.5 – 1.7 meters above ground level, facing the main pedestrian area or other visible public space.	
8.4.2.3	Compliance: The design, typography, color scheme, and layout of the Service Signage shall be approved by the DICT.	
8.4.2.4	Content: The Service Signage shall clearly and legibly display the following information, as provided and approved by the DICT;	
8.4.2.4.1	Contact information for technical support and service assistance.	
8.4.2.4.2	Instructions on how to connect to the public Wi-Fi service.	
8.4.2.4.3	Hotline numbers, QR codes, website links, and other DICT-mandated information;	
8.4.2.4.4	Any additional details required by subsequent DICT issuances.	
8.4.3	DICT reserves the right to require repositioning, redesign, or replacement of the signage at any time to ensure compliance with updated standards or to improve public visibility and service information.	
8.4.4	The Service Provider shall perform necessary maintenance or replacement of the signage to ensure it remains legible, compliant with DICT standards, and securely mounted at all times. Damage or illegibility must be repaired or replaced within seven (7) calendar days of discovery.	
8.4.5	The signage shall be installed at a distance of no less than one (1) meter and no more than ten (10) meters from the physical location of the outdoor AP.	
8.5	The Service Provider shall be responsible for the coordination and acquisition of additional contact persons and details as necessary, and processing of any permits and other documentation for the survey and installation	

	without additional cost to the DICT.	
8.5.1	The DICT shall provide reasonable assistance to the Service Provider:	
8.5.1.1	Initial acquisition of contact persons and details; and,	
8.5.1.2	Acquisition of verbal agreement, conforme, and/or Memorandum of Agreement for the survey and installation.	
8.6	MONITORING	
8.6.1	The following monitoring and reporting requirements shall be interpreted collectively and not independently. All monitoring obligations shall be read together as a unified requirement for compliance.	
8.6.2	The Service Provider shall provide a view access account showing a near real-time dashboard for quick status check and easier visualization of traffic, performance, and utilization.	
8.6.3	The Service Provider shall implement a cloud-managed monitoring system at the LAN and routing level to visualize real-time status, track performance, and enable network logs for up to six months.	
8.6.4	Monitoring shall commence from the date of acceptance of each site by DICT and shall continue for the duration of the project and as long as the location remains subscribed to the service.	
8.6.5	Monitoring shall be jointly undertaken by the Service Provider and the DICT through the DICT Network Operations Center (DICT NOC) to ensure transparency, accountability, and compliance with the Service Level Agreement (SLA).	
8.6.6	The AP must be compatible with, integrable into, and monitorable by the DICT Central Office - Network Monitoring System (NMS).	
8.6.7	During the lifetime of the Project, the Service Provider shall maintain a centralized monitoring dashboard for connections monitored:	
8.6.7.1	The cost of the system and its ongoing maintenance shall be borne entirely by the provider, at no expense to the DICT, for the duration of the project and as long as the location remains subscribed to the service.	
8.6.7.2	Administrative access shall be granted to the DICT.	
8.6.7.3	Should the implementation involve the collection or processing of personal data, both DICT and ISP/Service	

	Provider shall ensure full compliance with Republic Act No. 10173, otherwise known as the Data Privacy Act of 2012.	
8.6.7.4	A Data Sharing Agreement (DSA) shall be executed between the parties in cases where personal data is to be exchanged for the purposes of monitoring and administering the Program.	
8.6.7.5	All such data shall be processed solely for the Project's intended purposes and safeguarded against unauthorized access or disclosure.	
8.6.7.6	Any third-party service provider engaged for the system shall be contractually bound to uphold the confidentiality and integrity of personal data in accordance with applicable data protection laws.	
8.6.8	The Service Provider shall:	
8.6.8.1	Data Analytics: Incorporate analytics tools to monitor network usage, traffic patterns, service availability, and user connectivity metrics.	
8.6.8.2	Reporting: Generate customizable reports for stakeholders to evaluate network performance, service utilization, and operational compliance.	
8.6.8.3	The Service Provider must be able to continuously monitor and report the following:	
8.6.3.1	Status (Online/Offline): Real-time monitoring of whether a site or device is operational.	
8.6.3.2	Number of Connected Users: Tracks the total number of users currently connected to the Free Wi-Fi service.	
8.6.3.3	Number of Unique Users: Captures the total number of distinct users within a defined timeframe (e.g., per day)	
8.6.3.4	Data Consumption: Measures total inbound and outbound traffic (in MB/GB) per site.	
8.6.3.5	Bandwidth Utilization: Indicates the level of bandwidth usage relative to maximum available capacity.	
8.6.3.6	Data Retention: Ensures logs and historical data are stored based on the retention policy defined in this TOR.	
8.6.3.7	Historical Data of Connected Users: Including MAC addresses of users who previously connected. This should follow applicable data privacy laws (e.g., anonymization if required).	
8.6.3.8	List of Most Visited Sites: Aggregated report showing the top twenty (20) accessed domains or URLs. Useful for content filtering and bandwidth allocation.	
8.6.8.4	The Service Provider shall implement centralized management through provision of a Network Monitoring System (NMS) of the operational status and data usage of	

	each LEO kit to ensure continuous service functionality and proper tracking of data consumption. At a minimum, the following datasets shall be supported and reportable:	
8.6.8.4.1	Device Status – The system shall provide real-time online/offline monitoring with uptime and downtime status logs, retaining records for a minimum period of three (3) months.	
8.6.8.4.2	Bandwidth Utilization – Continuous monitoring and reporting of uplink and downlink bandwidth usage, with capability for per site aggregate data presentation.	
8.6.8.4.3	Data Consumption – Accurate measurement and reporting of total data usage per LEO kit, including daily/time-based tracking for near-limit utilization.	
8.6.8.5	The Service Provider shall provide the Procuring Entity with administrative access credentials necessary to verify account status, data utilization, and subscription validity.	
8.6.8.6	Upon completion of the contract, the Service Provider shall facilitate the turnover of all accounts to the Procuring Entity, either to DICT Region XIII or to the entity awarded in the succeeding procurement, without additional cost.	
8.6.9	During the post-award delivery, testing and acceptance process, the Service Provider must be able to demonstrate monitoring of all network equipment, including APs, routers, and provide complete, ready-to-use documentation of system operations and key functionalities. The Network Monitoring System must support the following functions:	
8.6.9.1	Real-time and historical dashboards	
8.6.9.2	Customizable alerts and thresholds	
8.6.9.3	Role-based access controls	
8.6.9.4	Secure data storage and backups	
8.6.9.5	Exportable reports (CSV, PDF, etc.)	
8.6.9.6	API integration for external systems	
8.6.10	Monitoring Compliance and Security	
8.6.10.1	The Service Provider shall ensure full compliance with the Data Privacy Act of 2012 and the Cybercrime Prevention Act of 2012. This compliance shall be verified during the Testing and Acceptance phase through the following verifiable parameters:	
8.6.10.1.1	Live Data Anonymization Validation: The Service Provider must conduct a successful technical demonstration	

	showing that the monitoring system automatically anonymizes or masks End-User Identifiable Information (EUII), such as MAC addresses and IP addresses, within the dashboard and stored logs.	
8.6.10.2	All user-level data (e.g., MAC address, browsing behavior) shall be anonymized or aggregated in accordance with Republic Act No. 10173 (Data Privacy Act of 2012), and shall only be processed for legitimate project-related purposes.	
8.6.10.3	MAC addresses and browsing data must be handled with appropriate consent or anonymization protocols.	
8.6.10.4	Access to the monitoring dashboard is strictly limited to Authorized Personnel. This includes the DICT FPIAP Project Management Team, DICT-NOC engineers, and the Service Provider's designated technical leads with registered credentials.	
8.6.11	Reporting and Review	
8.6.11.1	The Service Provider is required to submit soft and hard copies of comprehensive operational reports on a monthly basis to the DICT-NOC.	
8.6.11.2	Periodic audits and validations should be conducted to verify system integrity and data accuracy	
8.6.11.3	Escalation Matrix - a structured framework to ensure the timely resolution of issues by clearly defining escalation levels, responsibilities, and time-based triggers.	
8.6.11.4	Service Level Agreement Report - ticket-based report created for every incident (outage or maintenance) to track the event until resolution, and it must include the reason for the outage and the actions taken to resolve the issue before the ticket is closed.	
8.6.11.5	Justification - formally documented explanation provided by the Service Provider for why a service outage exceeded the 72-hour restoration period, which must include valid reasons and may be validated by DICT.	
8.6.11.6	The Service Provider shall conduct Monthly Remote Performance Testing for all active sites, including but not limited to bandwidth throughput, uptime logs, latency, and packet loss metrics. The results shall be compiled in a Monthly Performance Report, duly signed by the Service Provider's authorized representative, and submitted together with the monthly billing document.	
8.6.12	The DICT-NOC shall validate the submitted reports through automated monitoring tools and/or random remote verification tests, to ensure accuracy and compliance with Service Level Agreements (SLAs).	

8.7	End-User Training and Operational Support	
8.7.1	Technical, Unified Cloud, and Connectivity Management Training: The Service Provider must conduct a technical briefing for at least twenty (20) personnel from the concerned Regional Office (RO) of the DICT covering but not limited to the technical aspects of the service, operation of the Unified Cloud Management platform, and connectivity management, including real-time dashboard navigation, status monitoring, and visualization of performance and utilization metrics.	
8.7.2	The Service Provider shall provide digital copies of the "Troubleshooting Quick-Guides" to end users.	
8.7.3	Continuous Support: The Service Provider shall offer remote refresher briefings if significant changes are made to the monitoring dashboard or the captive portal interface.	
9	TECHNICAL SPECIFICATIONS	
9.1	CUSTOMER PREMISE EQUIPMENT (CPE)	
9.1.1	LEO Satellite Terminal	
9.1.1.1	Each site must be equipped with an enterprise-grade LEO Satellite Access Terminal that offers significantly higher network priority and thermal resilience, featuring specialized hardware designed for 24/7 high-demand environments and integration with professional networking equipment listed below.	
9.1.1.2	The terminal must be the latest available model to ensure full compatibility with current service capabilities and hardware updates.	
9.1.1.3	Antenna (Dish): Must be the latest model with an electronically steered phased-array antenna.	
9.1.1.3.1	Includes a kickstand (as part of the kit peripherals) and a proper mounting bracket to be Environmental protection rating: Minimum IP54 (preferred: IP67).	
9.1.1.3.2	Operating temperature range: -30°C to +50°C (-22°F to 122°F).	
9.1.1.3.3	Requires at least 100° clear sky field of view	
9.1.1.3.4	Capable of withstanding wind speeds of at least 80 kph (50 mph)	
9.1.1.3.5	AC power cable: Minimum length of 1.5 meters.	
9.1.1.3.6	Data cable (proprietary or Ethernet): Minimum length of 15 meters.	

9.1.1.3.7	Dish weight: Approximately 3.5–4.5 kg (7.7–9.9 lbs), excluding cables.	
9.1.1.3.8	provided and installed during deployment to ensure stability and optimal antenna alignment.	
9.1.1.4	Ethernet Connectivity:	
9.1.1.4.1	The terminal must include a built-in Ethernet LAN port to support direct wired network integration.	
9.1.1.4.2	The port must support standard RJ45 Ethernet connection for seamless integration with existing networking equipment.	
9.1.1.5	Wi-Fi Router:	
9.1.1.5.1	Must include a built-in high-performance Wi-Fi 6 (802.11ax) router.	
9.1.1.5.2	Operates on dual bands (2.4GHz and 5GHz).	
9.1.1.5.3	Must support mesh networking capability with compatible mesh nodes.	
9.1.1.5.4	Utilizes an internal MIMO antenna configuration (minimum 3x3 or equivalent).	
9.1.1.5.5	Must support WPA2 and WPA3 encryption for secure wireless connectivity.	
9.1.1.5.6	Environmental protection rating: Minimum IP54, suitable for indoor use.	
9.1.1.6	Mounting Bracket:	
9.1.1.6.1	Must include a metal roof/pole mounting kit compatible with the latest performance dish.	
9.1.1.6.2	Must support adjustable tilt angles up to 120° for optimal alignment.	
9.1.1.6.3	Designed for stable, all-weather installation on roofs or flat surfaces, with gear-adjustable lock to prevent slippage.	
9.1.1.6.4	All-metal construction for durability and long-term outdoor use.	
9.1.1.7	IPv6 Compliance and Network Configuration:	
9.1.1.7.1	The Service Provider shall ensure that the LEO Satellite network provides active IPv6 connectivity in compliance with DICT standards and the Free Wi-Fi for All Program Memorandum on IPv6 Implementation in all FPIAP-Activated Sites.	
9.1.1.7.2	The configuration shall support proper dual-stack or native IPv6 operation from the LEO Satellite Kit terminal up to the DICT CPEs to ensure seamless network functionality and monitoring.	

9.1.1.7.3	The Service Provider shall coordinate with DICT Regional Office XIII during testing and acceptance to verify IPv6 connectivity.	
9.1.2	Outdoor Access Point	
9.1.2.1	Each location shall be provisioned with two (2) Outdoor APs with the following minimum specifications.	
9.1.2.1.1	Standard: Complies with Wi-Fi 7 (IEEE 802.11be), supporting dual-band operation on 2.4 GHz and 5 GHz frequencies, and backward compatibility with Wi-Fi 6/6E/5/4 standards.	
9.1.2.1.2	Speed: Provides an aggregate wireless throughput of up to 5.0 Gbps or higher utilizing up to 160 MHz channel bandwidth and 4096-QAM modulation.	
9.1.2.1.3	Capacity: Supports at least 500 concurrent wireless clients per access point for outdoor high-density deployments.	
9.1.2.1.4	Interface: One (1) 10/100/1000/2.5G BASE-T RJ-45 Ethernet port supporting IEEE 802.3af/at Power over Ethernet (PoE).	
9.1.2.1.5	Power: Powered via PoE with maximum power consumption not exceeding 21W under full-load operation.	
9.1.2.1.6	Features: Supports Multi-Link Operation (MLO), 4096-QAM, SSID-to-VLAN mapping, seamless roaming (802.11k/v/r), band steering, load balancing, mesh networking capability, captive portal authentication, and WPA2/WPA3-Enterprise wireless security.	
9.1.2.1.7	Management: Cloud-managed platform with centralized monitoring, configuration management, firmware upgrades, traffic analytics, remote diagnostics, and centralized cloud mesh orchestration. Subscription-free cloud management is preferred.	
9.1.2.1.8	Design: Outdoor-rated enclosure with minimum IP65 ingress protection rating, corrosion-resistant housing, and integrated surge/lightning protection of at least ± 4 kV. Access point must support pole-mounted or wall-mounted installation for long-range outdoor wireless deployments and enterprise-managed mesh environments.	
9.1.2.1.9	Compatible with the SD-WAN Branch Router.	
9.1.2.1.10	Other Requirement: With personalized DICT-marked waterproof vinyl transfer-out sticker.	
9.1.3	Indoor Access Point	
9.1.3.1	Each location shall be provisioned with one (1) Indoor AP with the following minimum specifications.	

9.1.3.1.1	Standard: Complies with Wi-Fi 7 (IEEE 802.11be), supporting dual-band operation (2.4 GHz and 5 GHz), and backward compatibility with Wi-Fi 6/6E/5/4 standards. Devices must support advanced OFDMA and MU-MIMO technologies for high-density deployments.	
9.1.3.1.2	Speed: Must provide an aggregate wireless data rate of up to 5.0 Gbps or higher, utilizing up to 160 MHz channel bandwidth and 4096-QAM modulation.	
9.1.3.1.3	Capacity: Must support at least 500 concurrent wireless clients per access point in high-density environments with optimized airtime efficiency.	
9.1.3.1.4	Interface: One (1) 10/100/1000/2.5G BASE-T RJ-45 Ethernet port with Power over Ethernet (PoE) support compliant with IEEE 802.3af/at standards.	
9.1.3.1.5	Power: Powered via PoE; maximum power consumption not exceeding 21W under full load operation.	
9.1.3.1.6	Features: Must support Multi-Link Operation (MLO), 4096-QAM modulation, SSID-to-VLAN mapping, seamless roaming (802.11k/v/r), band steering, load balancing, mesh capability, captive portal authentication, and WPA2/WPA3-Enterprise security.	
9.1.3.1.7	Management: Must be cloud-managed via a centralized platform (subscription-free preferred), supporting real-time monitoring, configuration management, traffic analytics, and firmware upgrades.	
9.1.3.1.8	Installation: Indoor ceiling-mounted or wall-mounted form factor suitable for enterprise and high-density deployments.	
9.1.3.1.9	Compatible with the SD-WAN Branch Router	
9.1.3.1.10	Other Requirement: With personalized DICT-marked waterproof vinyl transfer-out sticker.	
9.1.4	SD-WAN Branch Router	
9.1.4.1	Capable/Supports SNMPv2 or higher.	
9.1.4.2	Shall be able to accommodate, integrate, and provide general traffic handling and management services for at least four (4) different networks via Layer 2 and Layer 3	
9.1.4.3	At least eight (8) 10/100/1000 Base-T Ports with PoE support compliant with IEEE 802.3af/at standards and compatible with the APs	
9.1.4.4	Supports routing protocols such as but not limited to Dynamic Host Configuration, Static routes, etc.	
9.1.4.5	Support IEEE 802.1X/MAC/Portal authentication	

9.1.4.6	Must provide DICT with at least (2) RJ45 100Mb or higher dedicated Ethernet ports and shall be connected within the same network	
9.1.4.7	Support AAA authentication and RADIUS authentication	
9.1.4.8	Capable of blocking restricted websites	
9.1.4.9	Support up to 64 IPSEC VPN tunnels.	
9.1.4.10	Support application-level traffic identification and filtering or equivalent	
9.1.4.11	Support standard SD-WAN features, including centralized management, traffic steering, link monitoring, application-aware routing, and multi-WAN support	
9.1.4.11.1	Support visibility and monitoring, security integration, and centralized management	
9.1.4.11.2	Support on-premise connectivity controller, and element management	
9.1.4.11.3	Support cloud management/orchestration platform	
9.1.4.11.4	The Service Provider will provide SD-WAN Gateway Controller/s at the Main Office Center and provide one (1) public IP if needed.	
9.1.5	Data Communication Box	
9.1.5.1	The Service Provider shall supply and install a dedicated Data Communication Box at each location to securely house all routing and networking equipment. The box must meet the following criteria:	
9.1.5.1.1	Minimum Size: 6U standard indoor wall-mount painted steel network cabinet.	
9.1.5.1.2	With clear swing-type toughened glass front door, lockable with key (4mm thick glass).	
9.1.5.1.3	Removable side and back panels	
9.1.5.1.4	Equipped with two (2) fans installed at the top for enhanced ventilation and optimal cooling	
9.1.5.1.5	Includes a pre-installed power distribution unit (PDU) with a 6-gang universal outlet	
9.1.5.1.6	H330 x W600 x D450mm	
9.1.5.1.7	Thickness: 1.0mm	
9.1.5.1.8	Material: SPCC cold rolled steel plate	
9.1.5.1.9	Load Capacity: 80kg	
9.1.5.1.10	Protection Grade: IP20	

9.1.5.1.11	Color: Black	
9.1.5.1.12	Cantilever tray and shelves included	
9.1.5.1.13	With adjustable mounting rails	
9.1.5.1.14	Construction: Durable and tamper-resistant to protect equipment from environmental damage and unauthorized access or theft.	
9.1.6	Uninterruptible Power Supply (UPS)- The Service Provider shall provide, install, and commission one (1) uninterruptible power supply per identified location with the following minimum specifications:	
9.1.6.1	Minimum 1000VA / 600W	
9.1.6.2	Line-Interactive with Automatic Voltage Regulation (AVR)	
9.1.6.3	Input Voltage Range: 162 V ~ 290 V	
9.1.6.4	Output Voltage Regulation (in Battery Mode): $\pm 10\%$ typical.	
9.1.6.5	Battery: Usually 12 V battery; e.g., 12 V / 7 Ah $\times 1$	
9.1.6.6	Protection: Overload, short-circuit, overcharge/discharge protection.	
9.1.7	The solution shall support centralized management, either through a unified platform or interoperable systems capable of integrated monitoring and administration.	
9.1.8	Installation: Positioned in a location that is secure yet accessible for routine maintenance and troubleshooting.	
9.2	INSTALLATION	
9.2.1	To ensure safety, functionality, and aesthetic quality of the installation, the Service Provider shall adhere to the following minimum standards:	
9.2.1.1	Mounting of Equipment: Communication boxes and APs shall be securely mounted at a height of not less than six (6) feet, or at a location preferred by the beneficiary, provided such location ensures security and optimal performance.	
9.2.1.2	Electrical Installation: All electrical components and wiring shall be installed safely and professionally, ensuring that no exposed wires or components pose any risk to personnel or property. The installation shall include a dedicated circuit breaker and proper termination to an	

	approved electrical outlet or junction box to ensure safe, stable, and compliant power distribution.	
9.2.1.3	Use of Materials: The use of improvised or substandard materials is strictly prohibited. This includes but is not limited to recycled plastic containers, rusted metal parts, or scrap wood. All materials used must be durable, visually appropriate, and professionally finished.	
9.2.1.4	Cable Management: All cables shall be securely fixed, properly groomed, and not left hanging loosely. Structured cabling practices must be observed, including the installation of cable trays, plastic moldings, patch panels, and patch cables as necessary. For UTP cables, hook-and-loop fasteners are recommended; however, zip ties are acceptable where appropriate.	
9.2.1.5	Cable Labeling: All LAN cables shall be properly labeled for easy identification, troubleshooting, and future maintenance.	
9.3	SECURITY - Shall provide appropriate security measures and proactive solutions against attacks and malicious activities transiting through their network:	
9.3.1	The Service Provider shall have security that blocks the proliferation of security threats, including malware, phishing, crypto mining, and Botnet command and control attacks/callbacks, as part of compliance with Republic Act 10175 or the “Cybercrime Prevention Act of 2012”.	
9.3.2	The Service provider shall have a child protection system which can block child abuse-related content, such as, but not limited to, pornography and proxies, in compliance with Republic Act 9775 or the “Anti-Child Pornography Act of 2009” and RA7610 or “Special Protection of Children Against Abuse, Exploitation and Discrimination Act” and DICT Circular No. 15, s. 2020, which prescribes the Child Online Safeguarding Policy for the Program.	
9.3.3	The DICT may provide an updateable list of websites for blacklisting and whitelisting, and the Service Provider shall ensure the compliance for blacklisting and whitelisting of sites that the DICT may provide, or integrate lists maintained by third parties, such as but not limited to the Internet Watch Foundation (www.iwf.org.uk), and the Philippine Government.	
9.3.4	To implement the cybersecurity solution of DICT, the DNS IP addresses will be provided by the DICT Cybersecurity Bureau to be configured in the AP.	
9.3.5	Content Filtering	

9.3.5.1	The Service Provider shall ensure all materials are appropriate for the educational environment, free from prohibited content, and appropriate for the intended public service environment and free from prohibited content.	
9.3.5.2	Prohibited content includes mobile games, online gambling, and other sites, as may be required by the Department of Information and Communications Technology (DICT).	
9.4	QUALITY OF SERVICE (QOS)	
9.4.1	The Service Provider shall provide policy or standards for network optimization. Must be able to provide prioritization of internet traffic between clients or applications:	
9.4.2	The Service provider must ensure and maintain monthly, the required bandwidth deliverable.	
10	SERVICE LEVEL AGREEMENT (SLA)	
11	OTHER REQUIREMENTS	
12	DELIVERY PERIOD/SCHEDULE OF REQUIREMENTS	
13	TESTING AND ACCEPTANCE	
14	EXTENSION AND RENEWAL	
15	PAYMENT SCHEDULE AND TERMS	

Section VIII. Philippine Bidding Document Related Forms

Bid Form for Procurement of Goods

[Note: The duly accomplished form shall be submitted with the Bid]

BID FORM

Project Identification No.: DICT 13-2026-007

To: Department of Information and Communications Technology Region 13

Having examined the Philippine Bidding Documents (PBD) including the Supplemental Bid Bulletin Numbers [insert numbers], the receipt of which is hereby duly acknowledged, we, the undersigned, declare that:

- a) I/We have no reservation to the PBD, including the Supplemental Bid Bulletins, for the **Provision of Internet Access via Low Earth Orbit Satellite (PIALEOS) for Government Support in Barangay Halls and Public Transport Terminals in Region XIII**;
- b) Select one, delete the other
 - I/We undertake to deliver the Goods in accordance with the delivery schedule in the Schedule of Requirements;
- c) The total price of our Bid in words and figures, excluding any discount offered below, is *[insert information]*
- d) The discounts offered and the methodology for their application, if any, are: *[insert information]*; or indicate N/A if no discount offered
- e) The total bid price in words and figures, after applying the applicable discount, includes the cost of all taxes, such as, but not limited to *[specify the applicable taxes, e.g. (i) value added tax (VAT), (ii) income tax, (iii) local taxes, and (iv) other fiscal levies and duties]*, which are itemized in the *[Select one, delete the other: the Price Schedules/ Detailed Estimates]*.
- f) This Bid shall remain valid within a period stated in the PBD, and it shall be binding upon me/us at any time before the expiration of that period;
- g) If our bid is accepted, I/we commit to enter to a contract and provide a performance security in the form, amounts, and within the times prescribed in the PBD, and hereby acknowledge the consequences under the IRR of RA No. 12009 on forfeiture of Bid Security or enforcement of Bid Securing Declaration and on Blacklisting.

Until a formal Contract is prepared and executed, this Bid, together with your written acceptance thereof and your Notice of Award, shall be binding upon the Bidder.

I/We understand that you are not bound to accept the Lowest Calculated Bid or any Bid you may receive.

I/We certify/confirm that we comply with the eligibility requirements pursuant to the PBD.

The undersigned is authorized to submit the bid on behalf of [Name of the Bidder] as evidenced by the attached [State the Written Authority].

I/We acknowledge that failure to sign each and every page of this Bid Form, including the attached Schedule of Prices, shall be a ground for the rejection of our bid.

Duly authorized to sign the Bid for and behalf of:

[Insert Bidder's Name]

[Signature over Printed Name]

[Position/Designation]

[Date]

Price Schedule for Goods

Name of Bidder: _____

Project ID No. DICT 13-2026-00Z. Page _ of _____

Pricing Details for Goods Offered from Within the Philippines

1	2	3	4	5	6	7	8	9	10
Item	Description	Source of Domestic Product, as certified by the Relevant Agency	Qty	Unit price exw per item	Transportation and all other costs incidental to delivery, per item	Sales and other taxes payable if Contract is awarded, per item	Cost of Incidental Services, if applicable, per item	Total Price, per unit (col 5+6+7+8)	Total Price delivered Final Destination (col 9) x (col 4)
1	Provision of Internet Access via Low Earth Orbit Satellite (PIALEOS) for Government Support in Barangay Halls and Public Transport Terminals in Region XIII (Lot 1)								

Summary of Bid Prices

Lot No.	Item	Qty	Unit	Total No. of Access Points	Unit Cost	Total Cost
1	Barangay Halls: - Agusan del Norte; - Agusan del Sur; - Surigao del Norte; - Surigao del Sur	26	Locations	78		

Name: _____

Signature: _____

Duly authorized to sign the Bid for and behalf of: _____

Price Schedule for Goods

Name of Bidder: _____

Project ID No. DICT 13-2026-00Z. Page _ of _____

Pricing Details for Goods Offered from Within the Philippines

1	2	3	4	5	6	7	8	9	10
Item	Description	Source of Domestic Product, as certified by the Relevant Agency	Qty	Unit price exw per item	Transportation and all other costs incidental to delivery, per item	Sales and other taxes payable if Contract is awarded, per item	Cost of Incidental Services, if applicable, per item	Total Price, per unit (col 5+6+7+8)	Total Price delivered Final Destination (col 9) x (col 4)
2	Provision of Internet Access via Low Earth Orbit Satellite (PIALEOS) for Government Support in Barangay Halls and Public Transport Terminals in Region XIII (Lot 2)								

Summary of Bid Prices

Lot No.	Item	Qty	Unit	Total No. of Access Points	Unit Cost	Total Cost
2	Public Transport Terminals: - Agusan del Norte; - Agusan del Sur; - Surigao del Norte; - Surigao del Sur	15	Locations	45		

Name: _____

Signature: _____

Duly authorized to sign the Bid for and behalf of: _____

Contract Form

[Note: The duly accomplished form is not required to be submitted with the Bid but shall be submitted within ten (10) days after receiving the Notice of Award]

CONTRACT FOR [Insert Project Title]

This CONTRACT executed on the ____ day of _____ 20____ by and between:

[Name of Procuring Entity], a government agency of the Republic of the Philippines, hereinafter called “the Entity”;

-and-

[Name of Supplier /Contractor/ Consultant] a company duly organized and existing under the laws of [city and country], with principal office at [insert address], hereinafter called “the Supplier”.

WHEREAS, the Entity invited Bids for certain goods and services/works/consulting services, particularly *[Brief description of Project]*;

WHEREAS, the Supplier/Contractor/Consultant submitted a responsive bid and was awarded the contract for the procurement in the total amount of *[Contract price in words and figures, including currency]*, hereinafter referred to as the “Contract Price.”

NOW, THEREFORE, for and in consideration of the foregoing premises, the parties hereby agree as follows:

1. Unless otherwise stated, terms and expressions used in this Contract shall have the same meanings as those assigned to them in the Conditions of Contract, which form an integral part of this Contract.
2. The following documents as required by the Implementing Rules and Regulations of Republic Act No. 12009 shall form part and be read and construed as integral parts of this Contract, *viz.:*
 - Philippine Bidding Document (PBD); *[Select one, delete the others]*
 - *For Procurement of Goods*
 - i. Invitation to Bid;
 - ii. Instruction to Bidders;
 - iii. Bid Form, including all the documents/statements contained in the Bidder’s bidding envelopes, as annexes, and all other documents submitted (e.g., Bidder’s response to request for clarifications on the bid), including

- corrections to the bid, if any, resulting from the Procuring Entity's bid evaluation;
 - iv. Bid Data Sheet;
 - v. Schedule of Requirements;
 - vi. Technical Specifications;
 - vii. General and Special Conditions of Contract;
 - viii. Supplemental Bid Bulletins, if any; and
 - ix. Other contract documents that may be required by existing laws and/or the Entity.
- *For Procurement of Infrastructure Projects*
 - i. Drawings/Plans;
 - ii. Specifications;/Scope of Work;
 - iii. Bill of Quantities;
 - iv. General and Special Conditions of Contract; and
 - v. Supplemental Bid Bulletins, if any;
- *For Procurement of Consulting Services*
 - i. General and Special Conditions of Contract;
 - ii. Terms of Reference;
 - iii. Request for Expression of Interest;
 - iv. Instructions to Bidders;
 - v. Bid Data Sheet;
 - vi. Addenda and/or Supplemental/Bid Bulletins, if any;
 - vii. Bid forms, including all the documents/statements contained in the Bidder's bidding envelopes, as annexes, and all other documents/ statements submitted (*e.g.*, bidder's response to request for clarifications on the bid), including corrections to the bid, if any, resulting from the Procuring Entity's bid evaluation;
 - viii. Eligibility requirements, documents and/or statements;
 - ix. Performance Security;
 - x. Notice of Award of Contract and the Bidder's *conforme* thereto; and
 - xi. Other contract documents that may be required by existing laws and/or the Entity.
- Winning bidder's bid, including the Eligibility Requirements, Technical and Financial Proposals, and all other documents or statements submitted;
- Performance Security;
- Notice of Award of Contract; and the Bidder's *Conforme* thereto; and
- Other contract documents that may be required by existing laws and/or the Procuring Entity concerned in the PBD, such as but not limited to the Notice to Proceed and Warranty Security.

2. In consideration of the Contract Price of *[Contract Price in words and figures]*, or such other sums as may be determined in accordance with the terms of the Contract, the Supplier/Contractor/Consultant agrees to deliver and perform the items and related services for the *[Project Title]* described herein in accordance with the terms and conditions specified in the Contract and its annexed documents.
3. The *[Name of the Procuring Entity]* agrees to pay the above-mentioned sum to the Supplier/Contractor/Consultant in accordance with the schedule and manner provided in the Bidding Documents and its annexes.
4. Any dispute, difference, or claim arising out of or relating to this Contract, including its existence, validity, interpretation, breach, or termination thereof, may be submitted to arbitration or other form of alternative dispute resolution in accordance with the applicable law, such as Republic Act No. 9285 (Alternative Dispute Resolution Act of 2004) or Executive Order No 1008, series 1985 (Construction Industry Arbitration Law).

IN WITNESS WHEREOF, the parties hereto have caused this Contract to be executed in accordance with the laws of the Republic of the Philippines on the day and year first above written.

For the Procuring Entity
Head of the Procuring Entity or Duly
Authorized Representative

For the Bidder
Duly authorized to sign the Contract for and
behalf of *[Bidders Name]*:

[Signature over Printed Name]
[Position/Designation]
[Date]

[Signature over Printed Name]
[Position/Designation]
[Date]

Signed in the presence of:

[Name and Signature]
Witness – Procuring Entity

[Name and Signature]
Witness- Supplier

ACKNOWLEDGMENT

BEFORE ME, A Notary Public for and in the _____, City/Province of _____, this _____ day of _____, 20____, personally appeared the above-named persons who have satisfactorily proven to me their identity, through their identifying documents written below their names and signatures, that they are the same persons who executed and voluntarily signed the foregoing instrument consisting of _____ pages, including this page where this Acknowledgement is written, which they acknowledged before me as their free and voluntary act and deed.

WITNESS MY HAND AND SEAL this ____ day of *[month]* *[year]*.

NAME OF NOTARY PUBLIC

Notarial Commission No. _____

Notary Public for _____ until _____

Roll of Attorneys No. _____

PTR No. __, *[date issued]*, *[place issued]*

IBP No. __, *[date issued]*, *[place issued]*

Doc. No. _____

Page No. _____

Book No. _____

Series of _____

Omnibus Sworn Statement Form

[Note: The duly accomplished form shall be submitted with the Bid]

REPUBLIC OF THE PHILIPPINES)
CITY/MUNICIPALITY OF _____) S.S.

OMNIBUS SWORN STATEMENT

I, *[Name of Affiant]*, of legal age, *[Civil Status]*, *[Nationality]*, and with residence at *[Address of Affiant]*, after having been duly sworn in accordance with law, do hereby depose and state that:

1. *Select one, delete the others:*

- *If sole proprietorship:* I am the sole proprietor or authorized representative of *[Name of Bidder]* with office address at *[Address of Bidder]*;
- *If partnership, corporation, cooperative, or joint venture:* I am the duly authorized and designated representative of *[Name of Bidder]* with office address at *[Address of Bidder]*;
- *If individual consultant not registered under a sole proprietorship, in case of Consulting Services:* I am the individual consultant or authorized representative of *[Name of Bidder]* with office address at *[Address of Bidder]*;

2. *Select one, delete the others:*

- *If sole proprietorship:* As the owner and sole proprietor or authorized representative of *[Name of Bidder]*, I have full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for *[Project Title]* of the *[Name of the Procuring Entity]* *[insert "as supported by the attached duly notarized Special Power of Attorney" for authorized representative]*;
- *If partnership, corporation, cooperative, or joint venture:* I am granted full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for *[Project Title]* of the *[Name of the Procuring Entity]*, as supported by the attached duly notarized Special Power of Attorney, Board/Partnership Resolution, or Secretary's Certificate, whichever is applicable;

- *If individual consultant not registered under a sole proprietorship, in case of Consulting Services:* As the individual consultant or authorized representative of [Name of Bidder], I have full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for [Project Title] of the [Name of the Procuring Entity], as supported by the attached duly notarized Special Power of Attorney for authorized representative;
3. [Name of Bidder] is not “blacklisted” or barred from bidding by the Government of the Philippines or any of its agencies, offices, corporations, or Local Government Units, foreign government/foreign or international financing institution whose blacklisting rules have been recognized by the Government Procurement Policy Board; by itself or by relation, membership, association, affiliation, or controlling interest with another blacklisted person or entity;
 4. Each of the documents submitted in satisfaction of the bidding requirements is an authentic copy of the original, complete, and all statements and information provided therein are true and correct;
 5. [Name of Bidder] is authorizing the Head of the Procuring Entity or its duly authorized representative(s) to verify all the documents submitted;
 6. *Select one, delete the others:*
 - *If sole proprietorship :* The [Name of Bidder] and its spouse are not related by consanguinity or affinity up to the third civil degree to the Head of the Procuring Entity, Procurement Agent (if engaged), End-User or Implementing Unit, project consultants, head of the Project Management Office, or the members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat;
 - *If partnership :* The partnership itself and the partners of [Name of Bidder] are not related by consanguinity or affinity up to the third civil degree to the Head of the Procuring Entity, Procurement Agent (if engaged), End-User or Implementing Unit, project consultants, head of the Project Management Office, or the members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat;
 - *If cooperative:* The cooperative itself and members of the board of directors, general manager, or chief executive officer of [Name of Bidder] are not related by consanguinity or affinity up to the third civil degree to the Head of the Procuring Entity, Procurement Agent (if engaged), End-User or Implementing Unit, project consultants, head of the Project Management Office, or the members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat;

- *If corporation, or joint venture:* The corporation or joint venture itself, and officers, directors, and controlling stockholders of *[Name of Bidder]* are not related by consanguinity or affinity up to the third civil degree to the Head of the Procuring Entity, Procurement Agent (if engaged), End-User or Implementing Unit, project consultants, head of the Project Management Office, or the members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat;
 - *If individual consultant not registered under a sole proprietorship, in case of Consulting Services:* The individual consultant and its spouse are not related by consanguinity or affinity up to the third civil degree to the Head of the Procuring Entity, Procurement Agent (if engaged), End-User or Implementing Unit, project consultants, head of the Project Management Office, or the members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat;
7. It is understood that failure to faithfully disclose its relationship with the Head of the Procuring Entity, members of the BAC, the TWG, and the BAC Secretariat, the head of the PMO or the end-user unit or implementing unit, and the project consultants of the Procuring Entity, or of the procurement agent by consanguinity or affinity up to the third civil degree, as well as its submission of beneficial ownership information containing false entries shall be subject to blacklisting under Section 100 of the Implementing Rules and Regulations (IRR) of Republic Act (RA) No. 12009, without prejudice to criminal and civil liabilities under applicable laws, including their accessory penalties, if any.

Select one, delete the rest:

- *In case of corporations:* *[Name of Bidder]* declares its beneficial ownership information consistent with its updated General Information Sheet or Beneficial Ownership Declaration Form or any other document duly submitted to the SEC and has maintained a valid and updated file therein in compliance with Sections 20.2.9.1, 81, and 82 of the IRR of RA No. 12009.
 - *In case of Foreign Bidders:* *[Name of Bidder]* submitted an appropriate equivalent document in English issued by the country of the bidder concerned in accordance with Section 20.2.9.2 of the IRR of RA No. 12009.
8. *[Name of Bidder]* complies with existing labor laws and standards; and
9. *[Name of Bidder]* is aware of and has undertaken the following responsibilities as a Bidder:
- a) Carefully examine all of the Bidding Documents;

- b) Acknowledge all conditions, local or otherwise, affecting the implementation of the Contract;
 - c) Made an estimate of the facilities available and needed for the contract to be bid, if any; and
 - d) Inquire or secure Supplemental Bid Bulletin(s) issued for the [Project Title].
10. [Name of Bidder] did not give or pay directly or indirectly, any commission, amount, fee, or any form of consideration, pecuniary or otherwise, to any person or official, personnel or representative of the government in relation to any procurement project or activity.
11. In case advance payment was made or given to [Name of Bidder], failure to perform or deliver any of the obligations and undertakings in the contract shall be sufficient grounds to constitute criminal liability under existing laws.

IN WITNESS WHEREOF, I have hereunto set my hand this __ day of __, 20__ at _____, Philippines.

Duly authorized to sign the Bid for and behalf of:

[Insert Bidder's Name]

[Affiant's Signature over Printed Name]

[Position/Designation]

[Date]

JURAT

SUBSCRIBED AND SWORN to before me this ____ day of *[month]* *[year]* at *[place of execution]*, Philippines. Affiant/s is/are personally known to me and was/were identified by me through competent evidence of identity as defined in the 2004 Rules on Notarial Practice (A.M. No. 02-8-13-SC). Affiant/s exhibited to me his/her *[insert type of government identification card used]*, with his/her photograph and signature appearing thereon, with no. ____.

WITNESS MY HAND AND SEAL this ____ day of *[month]* *[year]*.

NAME OF NOTARY PUBLIC

Notarial Commission No. _____

Notary Public for _____ until _____

Roll of Attorneys No. _____

PTR No. __, *[date issued]*, *[place issued]*

IBP No. __, *[date issued]*, *[place issued]*

Doc. No. _____

Page No. _____

Book No. _____

Series of _____.

Bid Securing Declaration Form

[The duly accomplished form shall be submitted with the Bid if bidder opts to provide this type of bid security]

REPUBLIC OF THE PHILIPPINES)
CITY/MUNICIPALITY OF _____) S.S.

BID SECURING DECLARATION

Project Identification No.: *DICT 13-2026-007*

To: *[Insert name of the Procuring Entity]*

I/We, the undersigned, declare that:

- 1) I/We understand that, according to your conditions, bids must be supported by a Bid Security, which may be in the form of a Bid Securing Declaration;

I/We understand that upon conferment of the original offeror status under Section 30.6 of the Implementing Rules and Regulations (IRR) of Republic Act (RA) No. 12009, the offeror shall submit a Bid Securing Declaration within ten (10) days from the receipt of the certificate of conferment;

- 2) Select one, delete the other:

- I/We accept that: (a) I/we will be automatically disqualified from bidding for any procurement contract with any Procuring Entity upon receipt of your Blacklisting Order; and, (b) I/we will pay the applicable fine provided under the Guidelines on the Use of Bid Securing Declaration, within fifteen (15) days from receipt of the written demand by the Procuring Entity for the commission of acts resulting to the enforcement of the Bid Securing Declaration under Sections 52.2 (a), 63.2, 69.1 and 100, except 100.3 (c), of the IRR of Republic Act No. 12009; without prejudice to other legal action the government may undertake; and

- 3) I/We understand that this Bid Securing Declaration shall cease to be valid on the following circumstances:

- a) Upon expiration of the bid validity period, or any extension thereof pursuant to your request;
- b) I am/we are declared ineligible or post-disqualified upon receipt of your notice to such effect, and (i) I/we failed to timely file a request for reconsideration or (ii) I/we filed a waiver to avail of said right;

[Insert this paragraph for Unsolicited Offer with Bid Matching]

- b) Upon contract award and the LCRB is not the original offeror; or
- c) I am/we are declared the bidder with the *[Insert Award Criterion¹]* and I/we have furnished the performance security and signed the Contract.

IN WITNESS WHEREOF, I/We have hereunto set my/our hand/s this ____ day of *[month]* *[year]* at *[place of execution]*.

Duly authorized to sign the Bid for and behalf of:

[Insert Bidder's Name]

[Signature over Printed Name]

[Position/Designation]

[Date]

JURAT

SUBSCRIBED AND SWORN to before me this ____ day of *[month]* *[year]* at *[place of execution]*, Philippines. Affiant/s is/are personally known to me and was/were identified by me through competent evidence of identity as defined in the 2004 Rules on Notarial Practice (A.M. No. 02-8-13-SC). Affiant/s exhibited to me his/her *[insert type of government identification card used]*, with his/her photograph and signature appearing thereon, with no. ____.

WITNESS MY HAND AND SEAL this ____ day of *[month]* *[year]*.

NAME OF NOTARY PUBLIC

Notarial Commission No. _____

Notary Public for _____ until _____

Roll of Attorneys No. _____

PTR No. __, *[date issued]*, *[place issued]*

IBP No. __, *[date issued]*, *[place issued]*

Doc. No. _____

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Book No. _____

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**PROVISION OF INTERNET ACCESS VIA LOW EARTH ORBIT SATELLITE (PIALEOS) FOR
GOVERNMENT SUPPORT IN BARANGAY HALLS AND PUBLIC TRANSPORT TERMINALS IN
REGION XIII
DICT 13-2026-007**

**STATEMENT OF SINGLE (1) LARGEST COMPLETED CONTRACT OF SIMILAR NATURE
WITHIN THE LAST THREE (3) YEARS FROM DATE OF SUBMISSION AND RECEIPT OF BIDS
AMOUNTING TO AT LEAST FIFTY PERCENT (50%) OF THE APPROVED BUDGET OF THE
CONTRACT (ABC)**

*(Please attach certified true copy of the official receipts (ORs) and official contract that reflects the contract
amount indicated)*

Name of Client	Name of Contract	Date of the Contract	Kinds of Goods	Value of Contracts	Date of Completion	Official Receipt No. & Date OR End User's Acceptance Date

CERTIFIED CORRECT:

Name & Signature of Authorized Representative

Position

Date

Instructions:

1. Cut Off Date as of: (i) Up to the day before the deadline of submission of bids.
2. In the column under "Dates", indicate the dates of Delivery/End-User's Acceptance and Official Receipt No.
3. Name of Contract column, indicates the Nature/Scope of the Contract for the DICT to determine the relevance of the entry with the Procurement at hand.

**PROVISION OF INTERNET ACCESS VIA LOW EARTH ORBIT SATELLITE (PIALEOS) FOR
GOVERNMENT SUPPORT IN BARANGAY HALLS AND PUBLIC TRANSPORT TERMINALS IN
REGION XIII
DICT 13-2026-007**

STATEMENT OF ALL ONGOING CONTRACTS WITHIN THE LAST THREE (3) YEARS

All On-Going Contracts (including contract/s awarded but not yet started, if any)

MANDATORY ATTACHMENT: COPY OF THE "OFFICIAL CONTRACT" OR "PURCHASE ORDER" OR "NTP" OR "NOA" OF THE LISTED ON-GOING CONTRACTS THAT WILL REFLECT THE INDICATED AMOUNT.

Name of Client	Title of the Contract	Date and Status of the Contract	Kinds of Goods	Amount of the Contract	Values of Outstanding Contract	Date of Delivery	Purchase Order Number/s or Date of Contract/s

CERTIFIED CORRECT:

Name & Signature of Authorized Representative

Position

Date

Instructions:

1. State all on-going contracts including those awarded but not yet started (Government and Private Contracts which may be similar or not similar to the project called for bidding as of the day before the deadline of submission of bids.
2. If there is NO on-going contract including awarded but not yet started as of the above mentioned period, state none or equivalent term.
3. The total amount of the ongoing but not yet started contracts should be consistent with those used in the Financial Contracting Capacity (NFCC).

**PROVISION OF INTERNET ACCESS VIA LOW EARTH ORBIT SATELLITE (PIALEOS) FOR
GOVERNMENT SUPPORT IN BARANGAY HALLS AND PUBLIC TRANSPORT TERMINALS IN
REGION XIII
DICT 13-2026-007**

**CERTIFICATE OF NET FINANCIAL CONTRACTING CAPACITY
(Please show figures at how you arrived at the NFCC)**

This is to certify that our **Net Financial Contracting Capacity (NFCC)** is **Philippine Pesos** _____ (**P** _____) which is at least equal to the Approved Budget for the Contract (ABC). The amount is computed as follows:

NFCC = [(Current assets minus current liabilities) (K)] minus the value of all outstanding or uncompleted portions of the projects under ongoing contracts, including awarded contracts yet to be started, coinciding with the contract to be bid

Where: K = **10** for a contract duration of one year or less, **15** for a contract duration of more than one year up to two years, and **20** for a contract duration of more than two years.

$$\text{NFCC} = [(CA - CL) \times 15] - \text{Ongoing}$$

	Year 20__
Total Current Assets	
Less: Total Current Liabilities	
Net Working Capital	
Multiply by 15	
Less: Total of All Outstanding Contracts	
NFCC	

Issued this ____ day of _____, 2026.

CERTIFIED CORRECT:

Name & Signature of Authorized Representative

Position

Date

Notes:

The values of the bidder's current assets and current liabilities are based on the data submitted to BIR through its Electronic Filing and Payment System.

The detailed computation using the required formula must be shown as provided above.

The NFCC computation must at least be equal to the total ABC of the project.

**PROVISION OF INTERNET ACCESS VIA LOW EARTH ORBIT SATELLITE (PIALEOS) FOR
GOVERNMENT SUPPORT IN BARANGAY HALLS AND PUBLIC TRANSPORT TERMINALS IN
REGION XIII
DICT 13-2026-007**

CERTIFICATE OF PERFORMANCE EVALUATION

[Rating of at least Satisfactory to be issued by the Bidder's Single Largest Completed Contract Client indicated in the submitted Annex I-A on the performance of the product supplied / delivered by the prospective bidder]

This is to certify that (NAME OF BIDDER) has supplied our company/agency with (Name of Product/s). Based on our evaluation on timely delivery, compliance to specifications and performance, warranty and after sales service, we give (NAME OF BIDDER) a rating of:

VERY SATISFACTORY

SATISFACTORY

POOR

This Certification shall form part of the Technical Documentary Requirements in line with (NAME OF BIDDER) participation in the **Provision of Internet Access via Low Earth Orbit Satellite (PIALEOS) for Government Support in Barangay Halls and Public Transport Terminals in Region XIII** for the Department of Information and Communications Technology.

Issued this _____ day of _____ 2026 in _____, Philippines.

Name of Company (Bidder's Client)

Full name of Authorized Representative

Address

Signature of Authorized Representative

Tel. No. / Fax

E-Mail Address

PLEASE USE THIS BID FORM. DO NOT RETYPE OR ALTER.			
DEPARTMENT OF INFORMATION AND COMMUNICATIONS TECHNOLOGY			
FINANCIAL BID FORM (PRICES MUST BE INCLUSIVE OF VAT AND DELIVERED DUTIES PAID)			
PROVISION OF INTERNET CONNECTIVITY SERVICES (PICS) IN PUBLIC PLACES PHASE PROVISION OF INTERNET ACCESS VIA LOW EARTH ORBIT SATELLITE (PIALEOS) FOR GOVERNMENT SUPPORT IN BARANGAY HALLS AND PUBLIC TRANSPORT TERMINALS IN REGION XIII DICT 13-2026-007			
Description	Quantity	ABC (₱) Total Price	Financial Bid (₱) Total Price
Provision of Internet Access via Low Earth Orbit Satellite (PIALEOS) for Government Support in Barangay Halls and Public Transport Terminals in Region XIII (Lot 1)	26	2,502,266.00	
TOTAL BID PRICE (Amount in Words): 			
Notes: The financial bid is inclusive of all taxes, duties, transportation costs, delivery charges and all costs relative to the project requirements including installation, testing, commissioning and training. The bidder shall assume all risks until the goods have been delivered at the site and accepted by DICT.			
BIDDER'S UNDERTAKING I/We, the undersigned bidder, having examined the Bidding Documents including Bid Bulletins, as applicable hereby OFFER to (supply/deliver/perform) the above-described items. I/We undertake, if our bid is accepted, to deliver the items in accordance with the terms and conditions contained in the bid documents, including the posting of the required performance security within ten (10) calendar days from receipt of the Notice of Award. Until a formal contract/order confirmation is prepared and signed, this Bid is binding on us.			
Name of Company (in print)			
Signature of Company Authorized Representative			
Name and Designation (in print)			
Date			

PLEASE USE THIS BID FORM. DO NOT RETYPE OR ALTER.			
DEPARTMENT OF INFORMATION AND COMMUNICATIONS TECHNOLOGY			
FINANCIAL BID FORM (PRICES MUST BE INCLUSIVE OF VAT AND DELIVERED DUTIES PAID)			
PROVISION OF INTERNET CONNECTIVITY SERVICES (PICS) IN PUBLIC PLACES PHASE PROVISION OF INTERNET ACCESS VIA LOW EARTH ORBIT SATELLITE (PIALEOS) FOR GOVERNMENT SUPPORT IN BARANGAY HALLS AND PUBLIC TRANSPORT TERMINALS IN REGION XIII DICT 13-2026-007			
Description	Quantity	ABC (₱) Total Price	Financial Bid (₱) Total Price
Provision of Internet Access via Low Earth Orbit Satellite (PIALEOS) for Government Support in Barangay Halls and Public Transport Terminals in Region XIII (Lot 2)	15	1,443,615.00	
TOTAL BID PRICE (Amount in Words): 			
Notes: The financial bid is inclusive of all taxes, duties, transportation costs, delivery charges and all costs relative to the project requirements including installation, testing, commissioning and training. The bidder shall assume all risks until the goods have been delivered at the site and accepted by DICT.			
BIDDER'S UNDERTAKING I/We, the undersigned bidder, having examined the Bidding Documents including Bid Bulletins, as applicable hereby OFFER to (supply/deliver/perform) the above-described items. I/We undertake, if our bid is accepted, to deliver the items in accordance with the terms and conditions contained in the bid documents, including the posting of the required performance security within ten (10) calendar days from receipt of the Notice of Award. Until a formal contract/order confirmation is prepared and signed, this Bid is binding on us.			
Name of Company (in print)			
Signature of Company Authorized Representative			
Name and Designation (in print)			
Date			

Republic of the Philippines



Government Procurement Policy Board